JOHN W. FLANNAGAN DAM AND RESERVOIR & NORTH FORK OF POUND RIVER LAKE

MAINTENANCE SERVICES CONTRACT

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SECTION C-1
General

C-1.1. BACKGROUND.

John W. Flannagan Dam & Reservoir is located on Pound River in Dickenson County, Virginia between the towns of Haysi and Clintwood. The project purposes served include flood damage reduction, low-flow augmentation, fish and wildlife conservation, recreation and water supply. Approximate annual visitation to the Corps operated recreation areas is 400,000 visitors.

North Fork of Pound River Lake is located on North Fork of Pound River near the town of Pound in Wise County, Virginia. The project purposes served include flood damage reduction, recreation, fish and wildlife conservation and water supply. Approximate annual visitation to the Corps operated recreation areas is 135,000 visitors.

C-1.2. PERFORMANCE WORK STATEMENT.

The Contractor shall furnish all necessary management, personnel, materials, supplies, tools, equipment, fuel, and vehicles, except as otherwise provided herein, required to perform mowing, cleaning, janitorial, and other services at the John W. Flannagan Dam & Reservoir and North Fork of Pound River Lake project recreation areas, as specified and in strict accordance with all Terms, Conditions, General, Specific and Technical Provisions, Drawings, Attachments, Exhibits, etc., contained herein or incorporated by reference. Award of a contract does not guarantee that the Government will order all the types of services listed under the contract from the Contractor. The Government reserves the right to perform any portion of the services listed, to have the services performed in any other way it deems necessary, to increase or decrease service frequencies and/or quantities in any or all areas or services in the closed areas. In the event of a flood, unanticipated low or high visitation, any other occurrence that changes the need for services under this contract, or failure of the Contractor to perform scheduled work, the Government will issue a modification of the Task Order to stop work or to change the Work Schedule Calendars. The price will be proportionally reduced for services not performed or increased for added services.

The quantities listed in the price breakout schedule are approximate and are provided as information only to assist in preparation of quotes. They are not guaranteed, and the actual quantities may be more or less than shown. Variation in these estimated quantities shall not be justification for modification of the contract or request for additional payment.

Contractor's work and responsibility shall include, but shall not be limited to, all planning, programming, administration and management necessary to assure that all services provided are conducted in accordance with the contract and all applicable laws, regulations, codes, or directives. Contractor shall perform all related Contractor administrative services necessary to perform the work such as supply, procurement, quality control, Contractor financial control, and maintenance of accurate and complete records and files.

It is emphasized that the work described in this contract is a critical part of the U.S. Army Corps of Engineers (USACE) mission. Much of the work described will be performed in public recreation areas. USACE is committed to "Customer Care" and providing quality professional service. Failure of a Contractor to perform required work, to perform in a timely manner, or to perform quality work could risk public health and safety and result in the following problems:

a. Falls, snakebites, and reduced use and enjoyment of recreation facilities from lack of mowing.
b. Falls, cuts, infections, and accumulated animal feces from beaches no being cleaned and inspected.

c. Unsafe boating and limiting of lake surface recreation from a lack of drift removal.
d. Closed recreation areas from inoperable water, sewage and electrical systems.
e. Closed parking areas and road closures from lack of maintenance and repair.
f. Destroyed forests and natural areas from lack of emergency response capability.
g. Closed campgrounds, beaches and parks from lack of operators.
h. Significant dollar losses of recreational benefits.
i. Increased administrative and labor costs required for government performance of contracted work.

Work included in this contract generally involves work associated with operation and maintenance of areas at the specified Government projects. However, in special instances the contractor may be issued a task order under this contract for other Huntington District projects within the Commonwealth of Kentucky and within 50 linear miles. Examples of these special instances may include but are not limited to damaging storms, wildfires, floods, or other time-sensitive maintenance needs. Task orders issued in these circumstances will be *Bilateral and issued* on an individual basis using contract line items from the price breakout schedule.

C-1.3. TASK ORDERS.

All work under this contract will be ordered by issuance of individual Task Orders (Form 1449, see Exhibit K). No work shall be performed under this contract before an individual Task Order has been issued by the Contracting Officer (KO). The KO has four basic ways to order work using this contract: Fixed Price Task Orders, *Bilateral* Task Orders, Estimated Task Orders, and Emergency Task Orders. Only the KO, by issuance of a modification, may make any change to a Task Order. The type of Task Order used will be at the discretion of the KO. The Task Order will list those items from the price breakout schedule that are to be performed or used to perform the work, except for *Bilateral* Task Orders.

C-1.4 BILATERAL TASK ORDERS AND PRICING AGREEMENT.

Bilateral Task Orders (e.g., using items from C-5 of the Price Breakout Schedule) will be established through mutual agreement between the Contractor and the KO. This procedure is typically initiated by the Government. Unless otherwise specified in Request for Quote (RFQ) Letter, the Contractor shall return the completed quote by the due date issued in the request letter. If the Contractor's quote is reasonable, the KO will issue a Bilateral Task Order. If the Contractor's quote is considered unreasonable, the Contractor and KO will attempt to reach a fair and reasonable price through clarification and mutual agreement. If an agreement cannot be reached, the KO may elect not to issue a task order for the work. The Government reserves the right to obtain services by whatever means deemed to be in the best interest of the Government, including use of its own workforce.
The purpose of this evaluation and agreement process is to establish a fair and reasonable price for the job under consideration. The Government and Contractor will coordinate to determine the most efficient method of work and the number of hours required. For estimating and quote purposes, the JOHN W. FLANNAGAN DAM AND RESERVOIR LAKE OFFICE is the starting and stopping point for work crews. The most efficient method is that method of work which accomplishes the job safely and at the lowest price. Once agreed upon, the Contractor must perform the job in accordance with the performance work statement and line items established during this process.

C-1.5. BUSINESS HOURS.

a. Normal Business Hours. Normal business hours, except as otherwise specified herein, shall be Monday through Friday, 7:30 a.m. to 4:00 p.m. or as specified on the Task Order. Work inside Government buildings or other secured areas shall be performed during the above referenced work hours. Work that interferes with other ongoing functions at the project shall be scheduled around normal working hours, as specified by the Contracting Officer Representative (COR). Refer to individual sections of this specification for specific schedules of work.

b. Holiday Work. The eleven Federal holidays observed are:

New Year's Day (January 1st)
Martin Luther King Day (3rd Monday in January)
President's Day (3rd Monday in February)
Memorial Day (Last Monday in May)
Juneteenth (June 19th)
Independence Day (July 4th)
Labor Day (1st Monday in September)
Columbus Day (2nd Monday in October)
Veterans Day (November 11th)
Thanksgiving Day (4th Thursday in November)
Christmas Day (December 25th)

When one of the above designated holidays falls on a Sunday, the following Monday is observed as a legal holiday. When a legal holiday falls on a Saturday, the preceding Friday is observed as a holiday. Work shall be scheduled around the above listed Federal holidays except as specified herein or as approved by the COR.

Work may be required on holiday periods during heavy visitation, emergencies, or for other reasons as determined by the COR. Additional personnel may be required to handle the additional workload during holiday periods because of heavy visitation. The COR will notify the Contractor of actual work requirements.

c. Emergency Working Hours. Emergency working hours shall be 24 hours per day, 7 days per week.

d. Inclement Weather Work. The Contractor shall maintain the schedule of services regardless of inclement weather. Exceptions may be approved by the COR when severe conditions make it impractical or dangerous to perform the work. The KO will notify the Contractor, by modification to the Task Order, of any change that extends the performance period due to inclement weather.

C-1.6. CONTRACTOR SUBMITTALS.

Unless otherwise specified, the Contractor shall submit the following information to the COR prior to the pre-work conference for this contract:

a. Quality Control Plan. A suggested outline for the Contractor's Quality Control Plan is in Exhibit G.

b. Contractor Quality Control Inspector. List of Quality Control Inspectors.

c. Contractor Representatives. List of names of Contractor Representatives.

d. Accident Prevention Plan (APP). A suggested outline for the Contractor's Accident Prevention Plan is in Exhibit D. See Section H.2 for APP requirements.

e. Emergency Contacts. A prioritized list, including phone numbers, of those persons (normally Contractor Representatives) to call in case of emergencies.

f. Operators. A list of names of qualified equipment/vehicle operators, including experience, training, and qualification to operate specific equipment.

g. Certificate of Insurance. See Special Contract Requirements.

h. Security Requirements. See Section H.7 for requirements.

C-1.7. PERMITS AND LICENSES.

a. The Contractor shall, at his own expense, obtain any licenses or permits required to perform all aspects, requirements and work of this contract. The Contractor shall comply with all current Federal, State, and local laws and regulations and shall comply with any subsequent changes.

b. Regulations by the Virginia Division of Labor (VDOL) requires all Contractors working in the state to have a current Virginia Contractors License. The VDOL may be contacted at (276) 676-5465 for details. The Contracting Officer will notify the VDOL when a contract for work to be performed in Virginia is awarded to an out of state firm.

C-1.8. IDENTIFICATION OF CONTRACT EMPLOYEES AND VEHICLES.

The Contractor shall furnish his employees, other than office and clerical personnel, standardized uniforms (work shirt & work pants) with a company patch or embroidered identification on the breast pocket or on the sleeve at the top of the arm, within 30 days after notice of award of the contract. Any employee hired 30 calendar days after award of the Contract shall be in the required uniform within 14 calendar days of the date of hire. Contractor uniforms shall not resemble U.S. Army Corps of Engineers uniforms. Contractor employees and subcontractors shall wear these uniforms at all times they are performing work under this contract. Exceptions may be granted by the COR for short term workers, or during disasters, emergencies, wildfire suppression, or special circumstances specified by the COR. Stained or faded uniforms shall not be worn. Uniform shirts shall be buttoned and neatly tucked into pants at all times employees are on duty.

All vehicles used by the Contractor to perform work under this contract shall be identified with the company name prominently displayed on the outside of both front doors of each vehicle in a professional manner to provide an attractive and readily visible means of identification.

The Contractor may require his employees to report in their own vehicles to the project, but these personal vehicles must be parked at a site designated by the COR. All vehicles used in performance of work must be marked. Vehicles used by the Contractor to perform administrative functions such as morning meetings or crew supervision must also be marked.

C-1.9. SAFETY AND HEALTH REQUIREMENTS.
See Section H.2 for Safety Requirements.

C-1.10. SECURITY REQUIREMENTS.
See Section H.7 for security requirements.

C-1.11 DAMAGE REPORTS.

All instances where Government materials, supplies, property, and/or equipment are damaged shall be reported immediately to the COR. When the damage was caused by contract employees, a written report of the incident and extent of such damage shall be submitted to the COR, within 2 work days (less weekends and holidays) of occurrence. For property damage accidents of $25,000 or more the Contractor will complete and submit to the COR a copy of ENG 3394.

C-1.12. CONTRACT EMPLOYEES' CONDUCT AND COMPETENCY.

All Contractor employees shall conduct themselves in a proper manner at all times. Since the majority of work shall be performed in the presence of the general public, the conduct of all employees is critical and will be closely monitored. Contract employees shall comply with all provisions of Title 36, Chapter III, Part 327, CFR and obey all posted signs and regulations in the performance of the work under this contract. Use of controlled substances or consumption of beer or alcoholic beverages while performing contract duties is strictly prohibited.

a. Employee Dismissal. The Contractor expressly agrees to dismiss any employee or subcontractor

employee whose continued employment is deemed by the COR to be inconsistent with the best interests of the public or the U.S. Army Corps of Engineers. The KO or the COR may require the Contractor to immediately remove from the work site any employee or subcontractor who is incompetent, endangers persons or property, or whose physical or mental condition would impair their ability to satisfactorily perform the work. Notification to the Contractor will be promptly made in writing if time and circumstances permit. Otherwise, notification will be verbal and confirmed in writing as soon as possible. No removal shall reduce the Contractor's obligation to perform all work required under this contract nor be the basis for time extension. Immediate replacement of the employee shall be made.

C-1.13. DAMAGE OR LOSS OF CONTRACTOR'S SUPPLIES AND PROPERTY.

The Contractor is responsible for taking the action necessary to protect Contractor supplies, materials and equipment, and the personal property of Contractor employees from loss, damage or theft. The Government assumes no responsibility for theft, damage, etc., of the above.

C-1.14. SUPERVISION.

The Contractor or a Contractor Representative shall personally supervise the work or be readily available by phone or other means of communication to respond to any contract issue that may arise when work is in progress. The Contractor Representative(s) shall conduct overall management coordination and be the central point of contact with the Government for performance of all work under the contract.

Each Contractor Representative shall have full authority to contractually commit the Contractor for prompt action on all matters pertaining to administration of this contract and shall be the on-site Contractor employee who is responsible for safety.

In addition to Contractor Representative(s), the Contractor shall also appoint Quality Control Inspectors (QCI) who shall perform the Contractor's Quality Control Program. QCI's shall be responsible for implementing the Contractor's Accident Prevention Plan. All QCI'S shall have the authority to determine for the Contractor when work is ready for Government inspection and to make decisions for the Contractor on re-performance when necessary. A QCI shall be appointed for each work crew. For work performed outside normal working hours, a Contractor Representative or QCI shall be present at the work site.

The COR and Government Inspectors will deal directly with the QCI's or Contractor Representatives, for normal day-to-day administration of the contract provisions.

The names and telephone numbers of all individuals authorized to act on behalf of the Contractor as Contractor Representatives shall be submitted in writing to the COR before work is performed.

The Contractor shall maintain copies of contract work requirements, specifications, Activity Hazard Analysis, etc., at each work site which relate to each person's work responsibilities and shall review them to insure employees comprehension of a job prior to initiating work.

C-1.15. ENVIRONMENTAL PROGRAM.

The Contractor shall comply with Federal, State, and local laws, regulations and standards regarding environmental protection. All environmental protection matters shall be coordinated with the COR. Any of the facilities operated by the Contractor may be inspected by the COR, or other Federal, State and local officials without advance notice. Access for inspection shall be granted upon request. Citations against Government facilities operated by the Contractor for non-compliance with environmental standards are a matter for resolution between the Government and the issuing office. Payment of fines or penalty charges associated with citations issued by Federal, State or local officials will be paid by the Government. If the citations are issued due to faulty operation or maintenance practices of the Contractor, the OO will deduct the fine from any monies due the Contractor.

The Contractor shall conduct all operations and maintenance activities in a manner to prevent contamination of Government land and property. The Contractor shall ensure all lubricants, petroleum products, paints, cleaning materials, or any other hazardous substances are not spilled, leaked or disposed of on Government property and are disposed of in accordance with environmental regulations. If spills or contamination occur, the Contractor shall be responsible for cleanup in accordance with Federal, State and Local Law. Such spills shall be reported to the COR immediately.

C-1.16. CONTRACT DISCREPANCY REPORT (CDR).

A CDR is a formal document used by the Government to process defects in services (see Exhibit M). As initially issued to the Contractor, the CDR describes the discrepancy or problem. The CDR will be discussed with the Contractor or his representative when it is issued. The Contractor shall provide his written, legible response on the CDR form within 24 hours of issuance. The Contractor's response must:

a. Identify the cause and corrective action taken, and

b. Identify Contractor action to prevent recurrence.

The COR and KO will evaluate the Contractor's response and take appropriate action, which may include making necessary deductions. Upon finalization of the CDR, the Contractor and the COR must sign the form. The Contractor will be given a copy of the completed form. Should the Contractor not concur with any decision, etc., the Contractor may so state, in writing, and request a final decision by the Contracting Officer. The Contracting Officer monitors all CDR's issued, and CDR's are the principal evidence used by the Contracting Officer in determining Government contract actions such as termination or decision not to exercise options.

C-1.17. MORNING MEETINGS.

The Contractor or his authorized representative shall report, in person, or via telephone, between 07:30 a.m. and 08:30 a.m. each workday (Monday-Friday) to the COR at the office to discuss contract work items. Specific topics of discussion at the morning meetings may include issuing task orders, inspections, quality control, and upcoming work. If a CDR is issued, mutual effort will be made to resolve any and all problems identified to preclude their recurrence. The reporting time and method (via phone) can be changed if a mutually agreeable time and method can be arranged between the COR and Contractor.

C-1.18. QUALITY CONTROL.

The Contractor shall establish a Quality Control program to assure the requirements of the contract are provided as specified. The primary purpose of Quality Control is to identify and correct deficiencies in the quality of services performed before the level of performance is unacceptable.

The program shall include, but not be limited to the following:

a. An inspection system covering all the services stated in the contract specifications. It shall specify areas to be inspected, either on a scheduled or unscheduled basis and the individuals who shall do the inspection.

b. A method of identifying and correcting deficiencies in the quality of services performed before the level of performance is unacceptable.

c. A file of all inspections conducted by the Contractor and the corrective actions taken. These files shall be made available for inspection upon request by the COR.

d. A method of insuring that employees have full knowledge of work assignments, and that appropriate technical expertise is utilized with each work assignment.

e. A method of coordinating each work crew's activities with the COR and/or inspector.

A sample program is described in Exhibit G. The Contractor may use any or all portions of this plan to prepare a plan of his/her own. A signed plan, including Contractor specific information, shall be provided to the Contracting Officer and the COR prior to the Pre-Work Conference. If changes to this program occur, updated copies shall be provided to the Contracting Officer and COR.

Failure to provide appropriate Quality Control may result in issuance of a CDR, and/or termination of the contract.

C-1.19. QUALITY ASSURANCE.

The Government will monitor the Contractor's performance in each functional area under this contract and reserves the rights to use whatever additional surveillance procedures are deemed appropriate. The Government will monitor the contract to ensure compliance using a Quality Assurance Surveillance Plan (QASP) but reserves the right to alter the plan at its own discretion.

The Government will prepare written inspection reports each day of the mowing cycle and the Contractor will be informed of the Government's assessment of performance. If a deficiency is noted on an inspection report it must be corrected by the completion date, or a CDR will be issued. If all ordered work is not completed by the date specified on the Task Order, the Contractor will not be allowed to continue the mowing operation, a CDR will be issued, and the Government will implement a cure as described in Section C-1.16. Equipment breakdowns will not be considered adequate reasons for an extension of the specified completion date on the Task Order. Mowing is not complete for payment until all areas have been inspected and accepted by a Government Inspector.

The Government will keep a record of all complaints received by the public concerning Contractor performance. Upon receipt of a written complaint by the public, the Government will attempt to verify the complaint and furnish the Contractor a copy of the findings. Should the Government verification reveal a nonperformance by the Contractor, a CDR may be issued.

A Government employee shall not be considered an Inspector unless he identifies himself as such to the Contractor, the Contractor Representative, or Quality Control Inspector. No Inspector is authorized to change any provision of the specifications without written authorization of the Contracting Officer, nor shall the presence or absence of an inspector relieve the Contractor from any requirements of the Contract.

C-1.20. DEFICIENCIES.

If the Contractor fails to perform, or if performance in any area is judged unsatisfactory, the Government will take corrective action. If any of the services do not conform to contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no cost to the Government. When the defect in services cannot be corrected by re-performance, or cannot be corrected in the specified time frame, the Contractor is required to respond to a CDR (See Section C-1.16), and deductions will be determined in accordance with Contract Clause entitled "Inspection of Services" and in accordance with the Government's Quality Assurance Surveillance Plan.
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C-1.21.CONTRACTOR WORK SCHEDULE.

At least one week prior to the pre-work conference, the Contractor shall provide to the COR a daily schedule for the services listed under Section C-3 and C-4, with the completion time for each work item. The Contractor's Representative or Quality Control Inspector shall remain at the worksite until the scheduled completion time to permit a Government Inspector to check the work. Any change in the schedule shall be submitted to the COR at least two weeks in advance of the change, unless otherwise approved by the COR. The work schedule submitted must be of sufficient detail to allow the Corps to inspect all work as it is performed. A sample Contractor work schedule is shown in Exhibit H.

C-1.22. EMERGENCY WORK.

In unusual or emergency situations where the Government determines that cleaning beyond what was scheduled on the Work Schedule Calendars is necessary, this additional work will be ordered by issuance of Task Orders using individual line items from the Price breakout schedule. During these situations, verbal notification will be given by the Contracting Officer to the contractor to provide an additional cleaning to a specific restroom, washhouse, or grounds prior to the actual issuance of a Task Order. The Contractor must begin to perform the work within two hours of notification. An Emergency Task Order will be issued on the next business day after issuance of the verbal order.

C-1.23. INTERRUPTIONS TO SYSTEMS.

All work that would necessitate an interruption of the use of the project or its support systems or otherwise disrupt building occupants and/or the visiting public shall be fully coordinated and approved in advance by the COR. Interruptions shall be kept to an absolute minimum, and all repairs or replacements of equipment or components shall be accomplished in an expeditious and efficient manner.

C-1.24. CONTRACTOR FURNISHED ITEMS.

a. General. Except as described elsewhere in this contract, the Contractor shall furnish all personnel, facilities, vehicles, small tools, equipment and operators, supplies, or materials necessary to accomplish all required services. Equipment rental quotes shall include an operator, fuel, and transportation to and from the worksite. When the Contractor furnishes only an operator for Government equipment (such as a boat operator), the Government furnishes the equipment and fuel and will either transport the equipment to the work site or pay the Contractor to transport it. When the Task Order specifies the use of general wage classification employees such as laborer or general maintenance worker, the Contractor shall furnish the qualified employee in uniform and equipped with all necessary safety equipment, tools and equipment as specified in the equipment list at the end of each section, and those tools and equipment common to the trade which are necessary to perform the work described in the contract. All Contractor furnished tools, equipment, supplies, materials, or vehicles shall meet all applicable Federal, Department of Defense, Department of the Army, State and local laws or regulations. A partial list of equipment which shall be needed by the Contractor is included in each section.

b. Equipment. At the end of each section, an "Equipment List" is provided for Contractor reference. The equipment listed is not mandatory, nor necessarily complete. The Government requires, however, that the Contractor provide adequate equipment to perform the work required within the specified time period for each job. Adequacy of the equipment (e.g., mowing equipment and vehicles) to perform certain repetitive work will be determined prior to award of the contract. Also, all equipment used by the Contractor must meet safety requirements outlined in EM 385-1-1.

c. Service Vehicle.

1. It is the Contractor's responsibility to provide service or work vehicles as necessary, capable of transporting employees, equipment, tools, materials, and supplies that could reasonably be transported in a standard size 1/2 ton truck with a 4' x 8' bed to and from job sites on the project. The Government will not pay rental for a vehicle to transport Government and/or Contractor furnished equipment, tools, materials, and supplies to and from the job site as part of a negotiated Task Order.

2. Safety Equipment. Contractor service vehicles used along project and public roads must be equipped with an orange rooftop revolving light, a rear mounted warning sign, reflective tape on the rear bumper.

3. All vehicle(s) and Equipment used in the performance of work under this contract must be inspected and approved by the COR prior to performance of work. A sample of the Contractor Equipment and Supply Inspection form, CEORH Form 2800, is in Exhibit N.

d. Contractor Equipment and Supply Inspection. The apparent Contractor shall make available for inspection all service equipment, tools, and samples of supplies he proposes to use for work under this contract, along with proof of ownership or lease agreement. Such articles shall be made available for inspection within seven (7) working days after notice from the COR. Only equipment and supplies inspected and approved shall be used for work under this contract, even after award of the contract. If the apparent Contractor proposes to and/or is purchasing or leasing equipment or supplies, evidence of such along with the specifications shall be forwarded to the Contracting Officer. Failure of the apparent Contractor to comply with the foregoing will make the Contractor non-responsive. A sample of the Contractor Equipment and Supply Inspection Form, CELRH Form 2800, is in Exhibit N. All subsequently procured equipment to be used for work under this contract must be inspected and approved by the Government prior to use.

C-1.25. SAFEGUARDING GOVERNMENT PROPERTY.

The Contractor shall cooperate with Government personnel in safeguarding Government property. The Contractor shall be responsible for promptly reporting all acts of vandalism, larceny, or pilferage to Government property, and malfunctioning Government equipment to the COR. The Contractor shall establish security procedures and safeguards that are compatible with the Government's existing procedures, to protect all equipment, materials, supplies, tools, and other resources. The Contractor shall cooperate with, and provide any assistance necessary to, the Government during any audits, usage checks of expendable property, and inventories of nonexpendable property under control of the Contractor. Any item of value found on the work sites shall be placed into the custody of the COR for return to the owner, if ownership can be established. The Contractor shall inform the COR of any information he or his employees receive about lost and/or found articles from the public.

C-1.26. NOTIFICATION OF WORK TO BE DONE.

The Contractor will be notified of work to be performed by issuance of Task Orders. Under normal conditions, Task Orders will be issued that require response within 24 hours after receipt. All Task Orders must be completed by the Delivery Date shown in block 10 of the Task Order Form.

C-1.27. MINIMUM MANPOWER REQUIREMENTS.

The Contractor shall provide an adequate number of fully qualified personnel to perform the work specified herein.

C-1.28. MINIMUM PERSONNEL QUALIFICATIONS.

a. General. Employees, technical personnel, and consultants shall have the education, experience, or knowledge, as evidenced by license, certificate, or diploma, etc., to provide a comprehensive understanding of the systems and components to be serviced, operated, maintained, and repaired under this contract. Only qualified and/or licensed persons will be permitted to maintain or service electrical, water or sewage treatment systems; or operate equipment. Only drivers with valid state driver's license will be permitted to operate government vehicles. A commercial driver's license (CDL) will be required to operate certain large trucks, to pull trailers and operate other vehicles as required by the Commercial Vehicle Safety Act of 1986. Only properly trained and qualified employees shall be used in the performance of this contract. All employees shall be subject to such Government or other applicable regulations that are applicable during the time spent on Government property. If the COR decides the Contractor employee performing the specified work is unqualified, the Contractor shall immediately provide qualified personnel or subcontract work to a specialist familiar with the work to be done.

b. Training. Task Orders will be issued to provide training as deemed necessary by the Government. Contractor shall be paid the Grounds Maintenance Laborer rate for the hours required to attend the training.

c. Equipment Operators for Government Furnished Equipment. Only qualified operators will be permitted to operate government furnished equipment under this contract. It is the Contractor's responsibility to provide qualified operators for all Government equipment that will be operated by contract employees in performance of work under this contract. The Contractor shall furnish the Contracting Officer a listing of all equipment operators, along with the operator's experience, training and qualifications to operate specific government furnished equipment. This listing of equipment operators and their qualifications must be furnished to the Contracting Officer at least one week prior to the pre-work conference. If new equipment operators are hired by the Contractor, prior to operation of Government equipment, this listing will be updated and furnished to the Contracting Officer and COR. COR approved operators will be re-evaluated every 5 years. The COR has the right to prohibit any listed contract employee from operating Government provided equipment.

C-1.29. COOPERATION WITH OTHER CONTRACTORS, LESSEES, AND VOLUNTEERS.

The Government may undertake or award other contracts, or have lessees or volunteers performing certain work, including work that could otherwise be performed utilizing Task Orders under this contract. The Contractor shall fully cooperate with such other Contractors, lessees, volunteers and Government employees. The Contractor shall not commit or permit any act which will interfere with the performance of work by another Contractor, volunteer, lessee, or Government employee. The COR can alter the work schedules of the other Contractor, lessee, Government employees, volunteer, or the Contractor to avoid possible conflicts. Any such change (or failure to make such a change) by the COR shall not be the basis for a claim by the Contractor.

C-1.30. INCLEMENT WEATHER AND HOLIDAY WORK.

The Contractor shall maintain the schedule of services regardless of inclement weather. Exceptions can be approved by the COR when severe conditions make it impracticable or dangerous to perform the work. The Contractor will be notified, by modification to the Task Order, of any COR determination to extend the performance period due to inclement weather. Work may be requested on holidays (Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans Day, and Thanksgiving Day) during heavy visitation period (April through November). Also, additional personnel may be required to adequately take care of the additional workload during periods of heavy visitation.

C-1.31. PRE-WORK CONFERENCE.

The Contractor and his authorized representative(s) shall attend a pre-work conference prior to the initiation of work under this contract. One week prior to this meeting, the Contractor shall provide to the COR and Contracting Officer all items listed in Exhibit A. The Government will discuss the Contractor's responsibilities under this contract, identify project instrumentation, discuss the preparation of all reports, and answer the Contractor's questions.

C-1.32. REPORTS.

The Contractor shall, in an accurate and timely manner, prepare all reports, forms, permits etc., as required in this contract. A partial list of these reports, forms, permits, etc., follows:

Schedule of Work
Supplies Furnished and Used
Contractor Portion of Any CDR
Job Request Form (ORH Form 2770 Test)
Daily EMCS Checklist and Equipment Inspection/Maintenance
Worksheet (ENG Form 5007-R)
Vehicle Operational Record Form (CEORH Form 2813 Test)
Activity Hazard Analysis (AHA)
Man-Hours Report (4th business day of each month)

C-1.33. APPLICABLE PUBLICATIONS.

The Contractor shall perform technical work in accordance with applicable publications. They include but are not limited to:

MANUFACTURER'S RECOMMENDATIONS:
Operating Manuals
Repair Manuals
Maintenance Manuals

INDUSTRIAL STANDARDS AND CODES (Latest Editions):
Underwriter's Laboratories, Inc.
National Electrical Code
National Warm Air & Air Conditioning Association
National Association of Fan Manufacturers
National Fire Protection Association
American Society of Heating, Air Conditioning & Refrigeration Institute
Sheet Metal Manufacturers
Air Moving and Conditioning Association
American Welding Society
American National Standards Institute
American Concrete Institute
Portland Concrete Association
Asphalt Institute
American Institute of Steel Construction
National Association of Architectural Metal Manufacturers
Architectural Aluminum Manufacturers Association
The Aluminum Association
American Society for Testing and Materials
Flat Glass Marketing Association
American Association of Nurserymen, Inc.
OSHA Safety Standards

C-1.34. HOURLY RATES – PRICE QUOTES.

a. General. Section B of the contract requires the prospective Contractor to a prepare quote for various items required to perform work under this contract. Included are items which are listed using an hour (HR.) as the unit. Those Contract Line Items with an hour (HR.) for the unit, may be ordered in increments of thirty (30) minutes. Orders for increments of thirty minutes will be shown as "0.5" on estimates and Task Orders in the Quantity column, e.g. 0.5 hrs. or 12.5 hrs.

b. Equipment Rental Line Items. Equipment rental unit prices shall include an operator, fuel, and transportation to and from the job site in the unit price.

c. Hourly Labor Line Items. Hourly labor classification unit pricing shall include the employees' wages and benefits, required safety equipment, small tools and equipment common to that trade, and those tools and equipment necessary to perform the work described in the contract.

C-1.35. DEFINITIONS.

As used throughout this description/specification, the following terms shall have the meaning set forth below:

a. Ashes. The residue from burned wood, coal, coke or other combustible material.

b. Prospective Contractor. Contractor who is submitting his offer, or proposed costs, for performance of work described in the technical provisions.

c. Clean. Free of dirt, impurities or extraneous matter. The act of removing all dirt, impurities or extraneous matter, without damage, injury or impairment to that which is being cleaned.

d. Completion Date. All work must be completed by the completion date.

e. Contractor. The term Contractor refers to the prime Contractor, subcontractors, and all Contractor employees and personnel. The prime contractor shall be responsible for ensuring all subcontractors comply with the provisions of this contract.

f. Contractor Quality Control Inspector (QCI). Person designated by the Contractor to perform the Contractor's Quality Control program. A QCI shall be responsible for implementing the Contractor Accident Prevention Plan and shall have the authority to determine for the Contractor if work is ready for government inspection and make decisions for the Contractor on re-performance.

g. Contractor Representative (CR). Individual(s) selected to represent the interests of the Contractor with regards to all matters and activities involving this contract and shall be the onsite Contractor employee who is responsible for safety.

h. Contracting Officer (KO). A person with the authority to enter into, administer, and/or terminate contracts for the Government, and make related determinations and findings. The term includes certain authorized representatives of the Contracting Officer.

i. Contracting Officer Representative (COR). Person designated as the authorized representative of the Contracting Officer.

j. Debris. Stumps, rocks, street sweepings, roofing and construction wastes, the remains of something broken or destroyed, or broken fragments, household furniture and appliances, automobile and truck parts, and similar materials larger than 2 square inches; and driftwood, tree trimmings and sticks longer than 18 inches or 1 inch or greater in diameter. It shall also include dead animals and animal waste (regardless of size).

k. Disinfect. Clean, so as to free from infection by destroying disease germs or other harmful microorganisms, by using chemical agents.

l. Drift. Any accumulation of floating trash, debris, and fallen trees.

m. Drip-line. The dripline is defined as the outside edge of the tree's leaf cover.

n. EM 385-1-1. Corps of Engineers Safety and Health Requirements Manual, located on the web at http://usace.army.mil/CESO/Documents/EM385-1-1FINAL.pdf. Click on Organization, then Safety and Occupational Health, then Publications.

o. Fallen Trees. Trees that have fallen and create a safety hazard.

p. Garbage. Animal and vegetable waste, including grease, resulting from the handling, preparation, cooking and consumption of food.

q. Inspector. Individual designated by the COR to perform Quality Assurance.

r. Intermediate Inspection. Some phased jobs such as painting or disassembly and repair may require Government inspections at various stages as the job is being performed. In these cases, any required

intermediate inspections will be described in the Statement of Work. When an intermediate inspection is indicated, the Contractor shall not proceed with the next phase of the job until a Government inspection has been performed. The Contractor shall schedule an inspection in one of the following ways:

1. He reports to the COR or Government inspector that the subject phase of the job is complete and allows 1 hour for an inspection before proceeding, or

2. He may notify the COR at least 24 hours in advance of the exact time the particular phase will be ready for inspection. Fifteen minutes after an indicated inspection time, the Contractor may continue with the next phase of the job, if everything is in accordance with the specifications and no Government inspector is present.

s. Item. The term item, when used with the contract, refers to the Line Items contained in Section B of the contract.

t. Job Request Form. ORH Form 2770 (Test), used to describe proposed or suggested work items, and to secure estimates of services required to perform that work.

u. Maintenance Leader. Individual primarily responsible for maintenance of project facilities. The individual works directly with the Resource Manager and may act in the Resource Manager's behalf as necessary.

v. Miscellaneous Waste. In addition to all debris, miscellaneous waste includes grass cuttings, leaves, rocks, street sweepings, roofing and construction wastes, automobile and truck parts, the remains of something broken or destroyed, and similar materials 2 square inches or smaller; and driftwood, tree trimmings, and sticks shorter than 18 inches and 1 inch or less in diameter.

w. Mowing. Mowing is defined as the cutting of grass, weeds, vines, or other vegetation, with reel and rotary lawn mowers, gang mowers, or bush hogs.

x. Mowing Cycle. A mowing cycle is defined as the performance of all mowing and trimming within all of the areas ordered within the period as defined in Section C-2.2(f) from the date ordered, excluding weekends or holidays.

y. Office. Areas primarily for clerical or administrative functions and which usually contain desks, chairs, file cabinets, tables, and other common office furnishings.

z. Outside Top Edge of Ditchline. Elevation of road surface transferred to hillside of ditch.

aa. Plants. All ornamental trees, shrubs, flowers, and ground covers on the project.

bb. Playground Equipment. All equipment such as swings, slides, climbing toys, etc., provided for use by the public in the recreation areas.

cc. Policing. The picking up of trash, debris, drift, ashes, garbage, and miscellaneous waste, and disposing of the same in accordance with contract specifications.

dd. Project. All land and water resources that are managed by the Corps and/or leased by the Corps to other federal, state, or local agencies. Lands include both developed parks and undeveloped lands, and all water resources from the dam to the headwaters, unless otherwise defined by Congress.

ee. Quality Assurance. A method used by the Government to provide a measure of control over the quality of services provided by the Contractor.

ff. Quality Control. A method used by the Contractor to control the quality of services he/she provides for the

Government.

gg. Ranger. A Uniformed individual with responsibility for visitor assistance, control, safety, resource management, protection, and enforcement of Title 36 Code of Federal Regulations. The individual works directly with the Resource Manager and may act in the Resource Manager's behalf as necessary.

hh. Receptacles. Cans, drums, bins or similar containers used to contain trash, debris, drift, ashes and garbage for disposal.

ii. Recreation Season. Time period when the recreation areas are open.

jj. Resource Manager. A uniformed individual designated responsibility for overseeing the general operation, maintenance, and administration of the project.

kk. Restrooms. Portable toilet, vault toilet or structure, including sinks, toilets or urinals, provided for the comfort and personal hygiene of persons using the facilities. A restroom, when referring to vault toilets, includes one men's toilet and one women's toilet or one unisex toilet.

ll. Sanitize. To clean so as to preserve or restore healthy conditions, or to prevent or check unhealthy conditions.

mm. Storage/Utility Areas. Areas primarily used for the storage of supplies, materials or equipment, and areas used for general or utility purposes, such as employee eating or parking areas.

nn. Task Order. Standard Form 1449 used to order services in accordance with the specifications in this contract. Task Orders may only be issued and modified by the KO.

oo. Trash. A variety of unsalvageable waste material such as metal, glass, rags, tin cans, rubbish, plastic bottles, paper, wrappings, containers, cartons, and similar material.

pp. Tree and Brush Cutting. The cutting, flush with the ground, of course shrubby vegetation and seedling and sapling trees where the use of normal mowing or cutting devices, such as lawn mowers or string type trimmers, is not applicable.

qq. Trimming. Trimming is defined as the cutting of grass, weeds, vines, or other vegetation at locations which are not accessible to mowing by conventional mowing machines and therefore requires specialized cutting with hand or string trimmers, sickles, sling blades, or mechanical edgers.

rr. Washhouse. Restroom with shower facilities and, in some cases, laundry tubs.

- END OF SECTION C-1 -

SECTION C-2

Grass Mowing and Maintenance of Landscaped Areas

C-2.1 SCOPE OF WORK.

The work performed under this section consists of furnishing labor, equipment, fuel, transportation, tools and supplies necessary for the performance of the services set forth in the schedule and in strict accordance with these specifications for the areas and equipment listed in paragraphs C-2.13, C-2.15 and Exhibits B and C.

The Contractor shall perform work necessary to maintain landscaped areas to present safe, attractive recreation areas. Primary work will include mowing, trimming, weeding, and raking the recreation area grounds, as described in this Section. Work may also include removing, replacing or planting vegetation, trimming or cutting trees and brush, and clearing access roads to provide for public safety.

C-2.2 GENERAL.

The total mowing area at John W. Flannagan Reservoir contains approximately 79.5 acres and North Fork of Pound River Lake contains approximately 23 acres. This acreage includes the areas listed in paragraph C-2.13 and shown in Exhibit B and C. (Note: The mowing areas are the areas within the colored lines). The Contractor should confirm the exact mowing boundaries during the pre-quote site visit. During the pre-work conference the COR will point out the mowing limits of each area to the Contractor. The Contractor shall strictly mow to these limits, without exceeding them. It shall be the responsibility of the Contractor to locate all recreational support structures, utility lines, geotechnical instrumentation, trees and shrubs, public or private property, physical obstacles or hazards, trash, garbage, debris, drift, fallen tree limbs, and leaves within the mowing limits prior to each mowing and make sure it is either removed or clearly visible to the employees working in the area. The Contractor will be held responsible for any damage caused by mowing operations and will be required to replace any trees, shrubs, flowers or other public or private property damaged during mowing operations and will be responsible for any damage to geotechnical instruments.

Upon completion of mowing and trimming in an area, all grass must be within the specified height limits, or it will be considered unacceptable, and the area must be mowed again at no additional cost to the Government.

The Government will prepare written inspection reports daily, and the Contractor will be informed of the Government's assessment of performance during each morning meeting. If a deficiency is noted on an inspection report, it must be corrected by the completion date, or a CDR will be issued. If all work is not completed on the date specified on the Task Order, the Contractor will not be allowed to continue the mowing operation, a CDR will be issued, and the Government will implement a cure as described below. Equipment breakdowns will not be considered adequate reasons for an extension of the specified completion date on the Task Order. Mowing work is not complete for payment until all ordered mowing and trimming cycles are completed in accordance with the contract and have been inspected and accepted by a government inspector.

The terrain is steep and uneven in places. Areas may become slippery and/or easily rutted. The Contractor must understand that there is a considerable amount of hand trimming involved, and oftentimes the work must be performed around the visiting public. Due to weather, seasonal, and/or budget constraints, height of the grass to be mowed may vary from mowing to mowing. It is estimated that the grass may only be mowed approximately five times in one season. The Contractor shall have equipment and staff capable of mowing possible extremely tall grass at the agreed upon contract prices.

C-2.3. WORK TO BE PERFORMED.

All mowing operations shall be conducted in a prudent manner to protect the grass, sod, trees, shrubs, landscape and equipment, to preserve the aesthetic appearance of the area, and to ensure the safety of all persons around the mowing operations. A standard "Mowing Ahead" sign approved in accordance with the EM385-1-1 and the Virginia Department of Transportation regulations shall be erected on each end of mowing operations in each area where mowing operations are being performed. These signs shall be periodically adjusted so they are never more than 2/10 mile from the work in progress. Only properly sized mowing equipment shall be used. The Contractor shall use mowing equipment which provides a uniform cutting height in the entire mowing area. All soft and damp areas, such as inside a tree's natural dripline, which would be rutted by heavy equipment, may require the use of lightweight mowers or string trimmers. All riding equipment shall have rollover protection in addition to seat belts. All mower blades shall be kept sharp to assure clean cutting and minimize damage to the grass and sod. As a safety

precaution, the open vents of the mower housing or string trimmer shall be faced away from people, buildings, and vehicles. In cases where this is not possible, the work must either be delayed until the area is temporarily free of people and vehicles or accomplished with non-motorized hand tools. The Contractor shall mow/trim inside all secured (fenced-in) areas within the mowing limits each time an area mowing is ordered. The Contractor shall make advance arrangements with the COR or inspector to have such areas unlocked (if the Contractor has not been provided a key for the area) and the contractor shall be responsible for ensuring the areas are secured after work is complete. It shall be the Contractor's responsibility to keep grass clippings, litter, etc., that are cut up by Contractor equipment off the roads, sidewalks, parking lots, picnic tables and the areas under them, camping pull offs, impacted areas, landscaped beds, flower beds, pond and waterfall, etc. Grass Clippings on sidewalks and shelters shall be removed immediately after mowing/trimming to prevent tracking inside buildings. Likewise, any overlooked trash, debris, etc. shall be picked up and disposed of before leaving the area.

All mowing operations shall be performed during daylight hours. Mowing or trimming in camping areas shall not be performed before 8:00 a.m. or after 4:00 p.m. Work to be performed in secured areas shall be accomplished during normal project hours or as directed by the COR. Likewise, mowing and trimming operations shall not be conducted on Saturdays, Sundays, and Federal Holidays, unless approved in writing, in advance, by the COR.

The COR may suspend mowing operations at any time, due to wet grounds, safety hazards, or other reasons which are deemed valid. If mowing operations are suspended, an amount equal to the cost of mowing the un-mowed area will be deducted from the Task Order by Modification.

a. MOWING. Mowing and trimming in each area must be conducted in such a manner as to provide uniform grass height. Grass and weeds shall be mowed to a height of not more than three (3) inches or less than one and one-half (1-1/2) inches in all mowing areas. Mowing in areas fronting on water shall be to the water's edge. Access road berms shall be mowed a distance of ten (10) feet from road above or below grade, four (4) feet behind guardrails or two (2) feet beyond the outer edge of the ditch line, unless otherwise specified on the drawings. The mowing distance behind all fences shall be three (3) feet. All miscellaneous waste, trash, garbage, debris, drift, leaves, fallen trees and limbs (8 inches or less in diameter) shall be removed and disposed of in a project dumpster, burn pile or metal pile as appropriate prior to mowing. The Contractor will be held responsible for any damage caused by mowing operations, will be required to repair, seed, and mulch any turf damage, and will be required to replace in kind any trees, shrubs, flowers, and other public or private property damaged.

Upon the completion of mowing and trimming in an area all grass must be within the specified height limits, or it will be considered unacceptable, and the area must be re-mowed at no additional cost to the Government

b. TRIMMING. All trimming of an area shall be performed in conjunction with the mowing of the area. Trimming with specialized devices shall be performed in every location where conventional mowing would risk damage to either the object or a conventional mowing device or risk the safety of the operator or anyone else in the area. Consequently, special care shall be taken not to damage area trees, shrubs, wooden posts, or any public or private property. Trim around all bumper blocks in camping and parking areas. All poisonous plants shall be cut flush with the ground.

c. WEEDING. Each time mowing is accomplished within a specified area the Contractor shall remove all grass and weeds from impacted playgrounds, planter areas (including shrub and flower bed areas), parking areas, bumper blocks, walkways, stairs, handicap ramps, and all other paved or concreted areas within the area. The Contractor shall deposit all removed weeds and debris in a spoil area designated by the COR.

d. RAKING. If the Contractor's mowing operation causes clumps of grass clippings to be deposited (due to faulty equipment or mowing when the grass is too wet), the Contractor shall rake the area without expense to the Government within the mowing cycle. All raked grass shall be collected by the Contractor and disposed of in a location specified by the COR. This paragraph applies only to areas which are mowed on a regular basis.

e. LEAF REMOVAL, OFFICE VISITOR CENTER. Remove fallen leaves from the ground, flower beds, landscape mounds, sidewalks, trellis, roof, gutters and parking lot. The limits of the leaf removal area are the same

as the Office/Damsite Mowing and Temp Office/Overlook limits, approximately 2 acres. During leaf removal operations, remove all fallen twigs, branches and limbs that have fallen in the area. All material collected shall be deposited in the burn pile at the Hollow Place compound above the office.

C-2.4. MOWING CYCLE.

It is the intent of this requirement that mowing operations be started within 24 hours after issuance of the Task Order and continue uninterrupted until all work is completed. Areas shall be mowed in the order they are listed on the Task Order unless otherwise authorized by the COR. Mowing, trimming and weeding must be completed in one area before beginning another. The Contractor shall have seven consecutive days following issuance of a Task Order, excluding weekends, holidays, or other variances allowed or required by the COR, to complete the mowing and trimming described on the Task Order. In some cases, the KO will order a mowing for all areas included under the contract. Therefore, the Contractor shall be staffed and equipped to complete all mowing within the seven-day period (as defined).

Variances may include a completion date less than five days for smaller areas (e.g. project office), depending on seasonal needs, and will be specified on the Task Order.

C-2.5. PRUNING.

Pruning is defined as the cutting of shrubs, evergreen branches or deciduous trees to produce a uniform shape, or to remove dead or diseased parts. Pruned branches shall have a clean angular cut. All removed clippings shall be disposed of in a location approved by the COR. This work will be negotiated separately using Section C-5 of the Price Breakout Schedule.

C-2.6. TREE AND BRUSH CUTTING.

During the course of the contract the need may arise for the removal of trees and brush. For the purpose of this contract, brush and tree cutting is defined as the cutting (flush with the ground) of coarse shrubby vegetation and seedling and sapling trees, where the use of normal mowing or cutting devices, such as lawn mowers or string type trimmers, is not applicable. Non-woody vegetation shall be cut to a height of not more than one (1) inches. Any variations in cutting height will be identified on the Task Order. Cutting of these areas shall require the use of devices such as brush hogs, flails, mowing scythes, chain saws, or other approved equipment. This work will be negotiated using Section C-5 of the Price Breakout Schedule. All cuttings shall be collected by the Contractor and disposed of in an on-site location specified by the Task Order, or otherwise disposed of off Government property, in accordance with State law and local ordinances.

C-2.7. ACCESS ROAD CLEARING.

Clear, cut and remove all trees (less than 6-inch diameter), brush, vines, briars, weeds and vegetation along designated access roads to allow clear and safe passage. On the ditch line side of the road, the outside limit shall be twelve (12) feet from the edge of the blacktop (or road surface) or four (4) feet from the outside top edge of the ditch, whichever is the greater distance. In some areas the COR may elect to have some of the trees left in place. All material cut shall be removed from the work area and disposed of in an on-site location (specified by the COR), or otherwise disposed of off Government property in accordance with State law and Local ordinance. A clearance of sixteen (16) vertical feet above the entire clearing limits shall be maintained. This work shall be performed as ordered to maintain constant clearance along the entirety of designated access roads and negotiated using Section C-5 of the Price Breakout Schedule.

C-2.8. PLANTING OR REPLACING PLANTS.

Ornamental and native trees, shrubs, and ground covers planted around buildings or in public use areas shall be planted as specified in the Work Order. The replacement plants will be provided by the Government. This work will be negotiated separately using Section C-5 of the Price Breakout Schedule.

C-2.9 PREVENTION OF LANDSCAPE DEFACEMENT.

Ropes, cables, or guys shall not be fastened or attached to trees that are to remain, unless specifically authorized. Where such special emergency use is permitted, the Contractor shall first adequately wrap the trunk with a sufficient thickness of burlap or rags, over which softwood cleats shall be tied, before any ropes, cable, or wire is placed. The Contractor shall in any event be responsible for any damage resulting from such use.

C-2.10 RESTORATION OF LANDSCAPE DAMAGE.

Any trees or other landscape feature scarred or damaged by the Contractor's equipment or operations, shall be restored, as nearly as possible, to its original condition at the Contractor's expense. The COR will determine what method of restoration shall be used, and whether damaged trees shall be treated and healed, or removed and disposed of.

C-2.11. ITEMS TO BE FURNISHED BY THE GOVERNMENT.

The Contractor will be provided keys to allow access to certain secure areas and will be held responsible for losses due to his negligence and for the replacement of compromised locks (which can occur due to loss or duplication of keys). The Contractor shall provide controls to ensure Government furnished keys are utilized only for contract purposes, and that areas opened by the Contractor shall be secured upon exit. A description of these controls shall be included in the Contractor's Quality Control Plan. Upon completion (including any extensions of contract term) or termination of the contract for any reason, the Contractor shall return all Government keys in the same condition as received. Any discrepancies in the inventory shall be chargeable against the Contractor.

C-2.12. SUPPLIES TO BE FURNISHED BY THE CONTRACTOR.

The Contractor shall furnish all items necessary to perform the required work. Standard "Mowing Ahead" signs, approved in accordance with the EM385-1-1 and Virginia Department of Transportation, shall be provided by the contractor.

C-2.13. SERVICE EQUIPMENT.

The Contractor shall furnish the equipment listed in this paragraph or equipment adequate to perform the work required for fulfillment of this section. The list of equipment is a minimum. Additional equipment, appropriate to perform the job, is permitted. The adequacy of the equipment to perform the required service will be determined prior to award of the contract.

-Equipment adequate to transport mowing equipment.
-Dump Truck 2 Ton
-Commercial grade walk behind or riding mowers, 42” or larger
-Commercial String/blade trimmers
-Small hand tools
-Necessary Safety Equipment
-Two leaf blower
-Hand trimmers
-Rake(s) (Leaf/grass and Wood Mulch)

NOTE: Necessary safety equipment includes, but is not limited to: warning signs, safety vests, hard hats, steel-toe shoes, long trousers, shirts with sleeves (long or short), safety glasses or goggles, hearing protection, gloves, chaps, face shields, safety gas cans, etc. The Contractor shall be responsible for his employees taking necessary precautions to prevent injury due to poisonous plants and disease-causing insects.

C-2.14. SPECIAL PROVISIONS.

a. Employees performing mowing along public and project roads must wear ANSI standard Hi-Visibility Class II or Class III safety vests. Contractor vehicles involved in mowing along project and public roads must be equipped with an orange rooftop revolving light, a rear mounted warning sign, and reflective tape on the rear bumper.

b. Any vehicle used in the performance of work under this contract must be inspected and approved by the COR prior to performance of work. A sample of the Contractor Equipment and Supply Inspection form, CELRH Form 2800, is in Exhibit Q.

C-2.15. SERVICE AREAS.

The areas where mowing services will be required are as listed below and shown on maps in Exhibit B:

Areas to Mow/Trim	Approximate Acreage
John W. Flannagan	
Below Dam	7.5
Damsite/Office	7.5
Spillway	9
Temp Office/Overlook	2.25
Junction	3.5
Lower Twin	7
Pound River	8
Cranesnest	9
Dam Abutments	2
Lower Twin Leach Field and Roadway	2.5
Pound River Leach Field and Access Road	3
Hollow Place Access Road and Compound	2
Cranesnest Access Road - Rt. 83 to Area 1	4
Cranesnest Access Road - Area 1 to Area 3	1
Cranesnest Access Road - Area 3 to Roads End	5
Temp Office/Overlook Hillside	1
Cane Branch	0.5
Below Dam Fishermans Trail	0.5
Roadway Pulloff Hillside	1.75
Intake Pulloff Hillside	0.5
Intake Pulloff	0.25
Junction Bridge Pulloff & Fishing Trail	1
Skeetrock Bridge Roadway & Fishing Trail	0.75
Total Acres for JWF (Approximation Only)	**79.5**

North Fork of Pound	
Dam and Downstream	4.25
Dam Access Road, Overlook, Office	5.5

Left Dam Abutment, Intake Structure	1.5
Spillway Access Road and Trail	1
"O" Gage Bottom	3
Right Downstream Dam Abutment	0.25
Spillway	3.5
Overlook Hillside	1
Pine Mountain Radio Tower Access Road	3
Total Acres for NFP (Approximation Only)	**23**

C- 2.16 LINE ITEMS:

Mowings will be ordered by line items in the Price Breakout Schedule. Quantities of mowing are NOT guaranteed but based on current funding allocations (which are subject to change during the contract period). Line ITEM(S) to be MOWED as ordered.

- END OF SECTION C-2 –

SECTION C-3
CLEANING SERVICES - RECREATION AREAS

C-3.1 GENERAL.

The work performed under this section consists of furnishing labor, equipment, fuel, transportation, tools and supplies necessary for the performance of the services described herein, for the areas listed in paragraph C-3.8 and shown on project maps in Exhibit B.

C-3.2 WORK TO BE PERFORMED.

All trash and debris, drift, ashes and garbage, shall be removed as ordered and disposed of off Government property in accordance with State law and local ordinances, unless otherwise specified in writing by the COR. All cleaning services within areas visited by the public shall be performed so as not to interfere with the users. In campgrounds, cleaning time(s) for each washhouse shall be posted on the door of each washhouse on a sign approved by the COR. In addition to cleaning schedules, a “Closed for Cleaning” sign shall be placed on the restroom doors being cleaned. The Contractor shall provide these signs.

Three levels of cleaning services are necessary during a year to properly maintain the facilities. For the purpose of this contract the three levels of cleaning are defined as Level 1, Level 2 and Level 3 cleanings.

Level 1. Level 1 cleanings shall normally be performed during periods of high visitor use. Work will be requested to meet area needs as determined by the COR. Consequently, cleaning dates may vary frequently but will be specified on the Task Order. All work, unless otherwise directed by the COR, shall be performed during low visitor impact times (6:00 a.m. to 2:00 p.m. and 4:00 p.m. to 9:00 p.m.). Restrooms, washhouses and access paths to each, to include a ten (10) foot perimeter area, shall be cleaned twice daily, once during the morning work period and once during the evening work period. All other work described herein shall be performed daily in accordance with the Contractor’s approved work schedule.

Level 2. Level 2 cleanings shall normally be performed during periods of reduced visitor use. Work will be requested to meet area needs as determined by the COR. Consequently, cleaning dates may vary frequently but will

be specified on the Task Order. All work, unless otherwise specified shall be performed during low visitor impact times (6:00 a.m. to 2:00 p.m.). All work described for Level 1 cleanings shall be performed once daily in accordance with the Contractor's approved work schedule. Also, the weekly and biweekly cleanings described in Level 1 shall continue on the same frequency and in the same manner as specified.

Level 3. Level 3 cleanings shall be performed in areas without restrooms or washhouse facilities; or in areas when all restrooms and washhouses are closed and do not require cleaning, such as during the off-season. Perform all work described herein except restroom, tables and garbage cans in storage, or washhouse cleanings. All work shall be performed during normal duty hours and only on the days specified on the Task Order.

WORK TO BE PERFORMED. The Contractor shall provide the following services:

a. Restroom and Washhouse Cleaning. Clean all interior floors, walls, windows, doors, louvers, sills, interior and exterior light covers, fixtures, mirrors, shower curtains and stalls, benches, partitions (interior and exterior), wash basins and empty interior trash receptacles and replace trash bags during each cleaning. Floors shall be swept and wet mopped clean; all scuff marks and excess water shall be removed upon completion. Unscented liquid hand soap shall be completely filled in existing dispensers each cleaning. Remove all drawings, writing and graffiti that can be removed with a commercially available cleaner. Do not use abrasive materials to clean mirrors or other surfaces which could be damaged by scratching. If dead insects are present inside the light fixture covers, remove cover and remove insects and render the inside of the light covers clean. Remove all trash and miscellaneous waste from connected sidewalks and center passageways. Materials shall not be swept onto the grass or adjacent areas. Cleaning includes but is not limited to the removal of all dust from windowsills and screens, and removal of insect nests, such as spider webs, dirt dauber nests and wasp nests. Restrooms and washhouses shall be sprayed as necessary with a pesticide approved by the COR to remove nuisance insects. Clean the interior ceiling and exterior of the building at least every week. All shower stalls, toilets, seats, urinals, sinks and floors shall be disinfected and cleaned during each cleaning. All toilet tissue fixtures shall be checked and filled during each cleaning. An equivalent of one- and one-half rolls of dry toilet paper shall be maintained per fixture. Prior to leaving the restroom or washhouse there shall be no soap film, excess water or water spots left from any cleaning operations. Restroom pipe chases shall be kept in a clean and orderly fashion. Contractor shall not store any supplies in the restroom pipe chases or washhouses. All walkways and areas around electrical boxes shall be kept clear of supplies.

During each cleaning the Contractor shall perform minor maintenance to ensure continued operation of subject facilities. Such maintenance includes but is not limited to tightening loose fittings (to stop small water leaks), screws or bolts; checking and turning off water faucets if minor maintenance cannot fix them; cleaning stopped up drains with a plunger or snake; replacing or repairing shower fixtures and replacing shower heads as needed; replacing damaged or worn out shower curtains; and replacing all burned out light bulbs or tubes. Care shall be taken not to break fluorescent light tubes; any defective tubes shall be taken to the project office for disposal.

On a daily basis, the Contractor shall report the following to the COR:

1. Malfunctioning or damaged fixtures (turn off water to that fixture).
2. Damaged toilet paper holder, broken windows, screens, or mirrors or any damage which could cause injury. If injury could result from the use of a damaged item, the Contractor shall remove the item from service and report such action immediately to the COR or Corp Inspector. All safety hazards found on grounds, or in facilities cleaned by Contractor, shall be reported immediately to the COR or COR Representative. Contractor shall take steps to prevent public's contact with hazard (i.e., flag off area, post sign, etc.). Hazards include, but are not limited to, tripping hazards, overhead hazards, malfunctioning or damaged fixtures, loose or damaged areas of facilities, sharp objects, etc. and damage to toilets or toilet seats.
3. Leaks in plumbing which cannot be stopped by the tightening of a fitting or the addition of rubber washers, seats or o-rings.
4. Damaged door latches, which cannot be repaired by the tightening of a screw or bolt.
5. Need for painting of restroom areas and whether it requires touch up on a small area or painting the entire restroom.
6. Toilets, floor, sink and shower drains which cannot be unplugged by a plunger or snake.

When "No Power" complaints are received for restrooms or washhouses, the Contractor shall report the condition to

the COR or Corps employee. The Contractor shall install sign (provided by Contractor) informing the public restroom is “out of order”. Restroom doors shall be locked by the Contractor.

If a restroom or washhouse does not have water, the Contractor shall inspect it to determine the cause. If the problem can be repaired with minor maintenance, this shall be done immediately. If not, lock up the affected building and place a sign (provided by the Contractor) on the facility to notify the public and notify the COR immediately.

For the above work, the Government will furnish all necessary supplies such as light bulbs, washers, seats, bolts. The Contractor shall pick these items up at the maintenance shop.

a. Picnic Tables and Park Benches. Clean each tabletop and seat or park bench. Inspect and clean the legs and underside of all tables and park benches, and remove all insect nests such as spider webs, dirt dauber nests and wasp nests. Remove all trash and miscellaneous waste from table and park bench pads. Tables that have been moved from their proper location shall be put back to their proper location prior to cleaning. Any defects or damages in picnic table or park bench condition shall be reported to the COR immediately, this includes tabletops, seating surfaces, and frames.
b. Grills (Includes Cookers and Fire Rings). Extinguish all unattended fires. Remove all wood, ashes, garbage, trash, debris and miscellaneous waste from the pit, grill, cookers or fire rings and clean.
c. Waste Receptacles. Each receptacle shall be emptied during each scheduled cleaning. Any material adhering to the receptacle shall be removed. If the plastic bag insert is either torn or soiled, it shall be replaced. Receptacles that are soiled, both internally or externally, shall be cleaned and disinfected. Damaged receptacles shall be reported to the COR for replacement. Where nuisance insects such as flies, yellow jackets, and wasps are noticed, the containers shall be sprayed with a pesticide approved by the COR, to suppress these insects. Trash, debris, ashes and garbage, piled or placed around the receptacle, shall be removed. Outdoor waste receptacles are not provided in the campgrounds (dumpsters are on site). Day use areas, picnic areas, launch ramp areas and other recreation areas have outside waste receptacles.
d. Drinking Fountains (Includes Water Spigots). Clean and sanitize the spigot, drain bowl and top of the unit. Remove all dirt, dust and insect nests from the unit pedestal, and sweep and remove all trash, miscellaneous waste, debris, ashes and garbage from the sidewalk surrounding the unit. If drains associated with the fountains become plugged, the Contractor shall attempt to unstop the drain by using a plunger or snake. If the drain is still plugged, report the condition to the COR. During each cleaning the Contractor shall perform minor maintenance to ensure continued operation of the subject facilities.
e. Shelters, Amphitheaters, Fishing Piers, Bulletin Boards, Fences and Signs. Includes picnic shelters, gazebos, amphitheaters, fishing piers, fences, bulletin boards and signs. Sweep and remove all trash, debris, ashes and garbage from the floor with each cleaning. Clean all tables and benches. Materials shall not be swept into the grass or adjacent areas. Clean all fences, sign faces, posts, beams and rafters of soil, bird droppings or similar foreign material. Removal includes, but is not limited to, all insect nests, including wasp nests and spider webs, bird nests, bird droppings, soil, food, feces, unauthorized signs, posters or other decorations from shelter ceilings, eaves, posts, beams, rafters, bulletin boards, fences and signs. Where insect nests are removed, the area shall be scrubbed to remove all remains of the nest; this is especially important in removal of mud dauber nests. Remove all trash and debris from the roof and gutters. Shelter floors and adjacent areas (10 feet perimeter) shall be cleaned. Floors shall be wet scrubbed at least once per week or more often if unsanitary conditions merit additional wet scrubbing, with an approved cleaner not harmful to vegetation or the visiting public. Any damage or problems noted with these facilities that cannot be remedied by minor repair shall be reported to the COR or his representative immediately. Shelter cleanings shall be performed before 9:00 a.m., unless otherwise approved by the COR.
f. Policing Grounds. This includes all grounds in the recreation areas shown in Exhibit C or otherwise used by the public. Such areas include but are not limited to picnic grounds, campgrounds, spillway, boat ramps, parking areas, internal circulation roads, impacted areas, riprap areas and foot paths. The intent of this requirement is that all trash and materials listed below which are within recreation areas, or other areas used by the public, or are observable from recreation areas shall be removed. Pick up all trash, debris, ashes, garbage, drift, miscellaneous waste, fallen trees (up to 6 inches in diameter) and other materials deposited; and extinguish all unattended fires in these areas, down to and including the shorelines readily accessible by the public. This also includes any bagged garbage left by users. During this work if nuisance insects (including but not limited to wasps, hornets, and yellow jackets) are observed to be swarming or have a nest hanging in a tree, attached to a structure or in the ground within the limits of any area maintained under this contract, the Contractor shall take

the necessary steps to exterminate, usually by pesticide, and remove the insects and nest. Occasionally dead animals may be found along roadways or inside work areas; the Contractor shall remove these immediately and bury in an area specified by the COR with at least two (2) feet of earth over the carcass. If any sewage is spilled on the ground the area shall be cleaned and disinfected.

g. Policing Roads. Remove all trash, debris, garbage, ashes, drift and fallen trees (up to six inches in diameter) along all parking lots, roads and their right-of-way and boat launch ramps, included in this contract. The limit of right-of-way cleanup varies, depending on the openness of vegetation and the slope paralleling the road. For example, the uphill sides of an access road may be characteristically steep and covered with dense brush, while the downhill side may be the opposite. Consequently, litter thrown, dropped or otherwise deposited by passing motorists may travel or be blown a short distance on the uphill side and a substantially greater distance on the downhill side. Under these circumstances the intent of this requirement is that all litter deposited from the roadway or parking lots shall be picked up. Paved parking areas shall be blown clean on a weekly basis once litter is removed to remove any remaining dirt/debris.

h. Policing Dam. The Contractor shall pick up and remove all trash, debris, ashes, garbage, drift (up to six inches in diameter) and other materials deposited on both faces of the dam and abutments. For routine cleanings of the upstream face of the dam, Contractor shall remove all above materials observable from the perimeter of the area. Once each month the Contractor shall walk the entire upstream face of the dam and all along the project roadway beginning at the project entrance sign before the Spillway entrance area to the project entrance sign beyond the tower remove all the above materials, including those materials among the rocks and riprap. The Contractor shall indicate on the Contractor's cleaning schedule the day each month this service shall be performed.

i. Policing Trails. The Contractor shall pick up and remove all trash, debris, ashes, garbage, drift, fallen trees (up to 6 inches in diameter) and other materials deposited on or adjacent to designated trails and bridges. The intent of this requirement is that all litter observable from the trail be removed. The trails involved are identified in Section C-5. This work shall be performed only when cleaning services for trails is ordered. Contractor shall inform COR a minimum of 24 hours prior to policing trails. Removal of trees and/or limbs larger than 6 inches in diameter will be negotiated separately using line items from Section C-5.

j. Playground Equipment. The Contractor shall clean and inspect all playground equipment. The inspection shall include, but is not limited to, looking for worn chains on swing sets (especially moving parts), loose or missing bolts or parts, and examining the ground surface under and around the equipment to ensure a soft material is in place. Worn or missing parts shall be reported to the COR or his representative immediately, and loose bolts or parts shall be tightened, if possible, or otherwise reported to the COR or his representative. All horseshoe pits shall include leveling of soil around the impact area around the peg, as well as inspect the area for necessary repairs. Impacted mulch areas around and inside the playgrounds and horseshoe pitching facilities shall be raked/leveled daily, as necessary, and mulch or sand added as required. If additional material is needed for the playground or horseshoe pitching facilities floor, report this to the COR or his representative immediately.

k. Water Meters (John W. Flannagan only – Damsite, Cranesnest, and Lower Twin). Water meter readings shall be recorded on the form shown in Exhibit P. The results shall be given to the COR not later than the day after the readings are taken.

l. Special Cleaning Events. The contractor shall provide a specific number of employees to be determined by the COR to provide cleaning services during special events (i.e. Kids Fishing Day). All cleaning products and supplies needed for the duration of the special event will be provided by USACE and will be of no expense to the contractor. Contractor shall only provide labor for necessary activities based on hourly rates.

C-3.3 SERVICE EQUIPMENT.

The Contractor shall furnish the equipment listed in this paragraph, or equipment appropriate to perform the work required. This list of equipment is a minimum; additional equipment, appropriate to perform the work is encouraged. When the hauling of trash, debris, ashes, drift and fallen trees by truck is necessary, the Contractor shall, at a minimum, enclose the open bed of the truck with camper shell or cargo cover. NOTE: To comply with Dickenson County's solid waste management ordinance, vehicles used to transport garbage, including garbage in plastic bags collected from trash receptacles in recreation areas, must have a cargo body such as a camper shell on pick-up bed that is entirely enclosed. (See C-3.5b below)

Service Equipment.

Truck, ½ ton or larger
Blower
Water hose
Mops and buckets
Toilet bowl swabs or brushes
Household brushes
Brooms
Dust pans
Rags
Pressurized Sprayer (Automotive & Garden type)
Signs, such as "closed for cleaning" and "out of order"
Rake
Chainsaw and Safety Equipment

C-3.4 SPECIAL PROVISIONS.

a. Buckets and brushes used to clean toilets shall be identified by mark or color code. These buckets and brushes shall not be used to perform tasks other than toilet cleaning.

b. The Contractor shall comply with current solid waste ordinances. In Dickenson County (John W. Flannagan Reservoir), all garbage must be hauled within a totally enclosed area.

c. Contractor employees working along highways and roads or close to vehicular traffic, heavy equipment or equipment loading operations shall wear high visibility vests, meeting EM 385-1-1.

d. Only "across the counter" small quantity pesticides for use by the general public may be used by the Contractor. No restricted pesticides may be used. A Material Safety Data Sheet (MSDS) for all pesticides used shall be kept where the material is stored. These MSDS's shall be available to contract employees for their review and use. Pesticides proposed for usage indoors must be specifically recommended for indoor usage, specify insect targeted and be used in accordance with manufacturer recommendations. Restroom or other areas sprayed with pesticides must be signed to clearly advise the public, employees, or other visitors that pesticides have been sprayed in the vicinity. Pesticide control of nuisance insects is limited to the spraying for visible insects and nests. The Contractor is not responsible for the prevention of infestation control.

C-3.5. ITEMS TO BE FURNISHED BY THE GOVERNMENT.

Toilet seats, drain and faucet parts, faucets, light bulbs, sand and mulch.

C-3.6 SUPPLIES TO BE FURNISHED BY THE CONTRACTOR.

The Contractor shall furnish all cleaning, disinfectant and pesticide items necessary to perform the required work. The Contractor shall furnish a sign, when necessary, informing the public that a restroom is out of order. The Contractor shall also furnish toilet paper and plastic trash can liners. Toilet tissue shall be roll type, good quality (2-ply) and white in color. Plastic trash bags shall be at least 4 mils thick, or capable of suspending at least 50 pounds of dry weight. All cleaning, disinfectant and pesticide items must be approved by the COR before being used by the Contractor.

C-3.7 SERVICE AREAS.

John W. Flannagan Reservoir
Below Dam Area
Damsite Area
Spillway Area
Junction Area
Lower Twin Area
Pound River Area

Cranesnest Area

North Fork of Pound River Lake
Dam Access Road and Overlook Area
Dam, Downstream, Intake Structure and Trail Areas

C- 3.8. LINE ITEMS.

Cleaning services will be ordered using line items found on the Price Breakout Schedule. Quantities of cleaning are NOT guaranteed but based on current funding allocations (which are subject to change during the contract period).

- END OF SECTION C-3 –

SECTION C-4

JANITORIAL AND POLICING SERVICES

C-4.1 SCOPE OF WORK.

The Contractor shall be responsible for performing janitorial, cleaning, and policing services at the office/shop complexes at John W. Flannagan Reservoir and North Fork of Pound River Lake, as described in this contract. The Contractor shall provide all personnel, materials, supplies, tools, vehicles, fuel, and equipment necessary for the performance of the service described herein. The Contractor shall be responsible for performing the following services at the Office/Shop areas.

COR will provide the Contractor with a Janitorial schedule which will be subject to change depending on Government work schedule.

C-4.2 SERVICE AREAS.

The following areas are to be serviced under this section of the contract: operations and maintenance offices, visitor center area, kitchen, restrooms, storage rooms, shop areas and compounds at John W. Flannagan Reservoir and North Fork of Pound River Lake.

C-4.3 WORK TO BE PERFORMED.

During each cleaning the Contractor shall perform minor maintenance to ensure continued operation of subject facilities. Such maintenance includes, but is not limited to, tightening loose fittings, screws or bolts, cleaning drains with a plunger and/or snake; replacing faucet seats, o-rings, and washers; checking and turning off water faucets and replacing all burnt out light bulbs inside and outside the building.

All services described in this section shall be completed on the days listed on the Task Order. The objective of this schedule is to ensure the facilities are presentable to the general public and are maintained in a clean and sanitary manner at all times.

Services in office areas shall be scheduled to ensure a minimum of disruption to Government employees and visitors. Cleaning shall normally be done from 8:00 a.m. to 11:30 a.m. at John W. Flannagan Reservoir and 12:30 p.m. to 3:30 p.m. at North Fork of Pound River Lake, unless otherwise approved by the COR. All work is to be accomplished on the days specified. During normal cleanings all work shall be done in one room before proceeding to another room. The order in which rooms are cleaned shall be coordinated with the COR. The COR may suspend

work, change the order work is accomplished or change days work is accomplished at any time due to office being closed or other reasons the COR may deem valid. The Contractor shall deduct from the Contractor's invoice the proportional amount of the item price when work has been suspended.

Three levels of janitorial services are necessary to properly maintain the project facilities at John W. Flannagan Reservoir and North Fork of Pound River Lake. For the purpose of this contract, the levels of services are defined as Level I, Level II and Level III. There shall be no soap film or streaks left from any cleaning operation involving any cleaning level.

a. LEVEL I - JOHN W. FLANNAGAN RESERVOIR. On each day specified, perform a complete cleaning service common to the trade for all areas specified in C-4.2 above, including, but not necessarily limited to the following: All exposed surfaces shall be cleaned with no soap film or streaks left from any cleaning operation.

1) Floors
    a. Carpeted and rug/runners - vacuum and spot clean stains; allow floors to dry before putting back down.

    b. Uncarpeted - sweep or vacuum and wet mop; clean and remove scuff marks and excess water. Mop water shall be changed during mopping after every fourth (4) room. All strings that are lost from the mop head shall be picked up when complete.

2) Interior walls, ceilings, baseboards, trim, doors, pictures, bulletin boards, exhibits, plants etc. dust and spot clean as needed.

3) Interior windows, facings and sills - clean and wipe dry. Use only ammonia-free cleaner on office windows with shading.

4) Waste baskets, trash cans and Shredder cans - empty and replace bags when soiled; clean and disinfect interior and exterior if soiled/stained. Other bagged trash generated at the office/shop shall also be removed by the Contractor.

5) Furniture - dust and/or clean. Clean fabric with an approved upholstery cleaner as needed. Feather dusters are prohibited in the office area.

6) Office machines and equipment - dust and/or clean exterior surfaces.

7) Ash trays (located outside) – clean/empty.

8) Lavatories/sinks, eyewash station, maintenance shelves, tables, cabinets, etc. - dust and/or clean/disinfect/sanitize.

9) Kitchen Area – All tables and counter tops shall be cleaned and sanitized. All dirty dishes located in the kitchen area shall be washed clean and placed in the drainer to dry. Sink bowl shall be cleaned and sanitized. One full roll of paper towels shall be placed at the fixture

10) Stove, refrigerator - dust and/or clean exterior surfaces; however, clean interior of microwave.

11) Restrooms. Do not use abrasive materials to clean mirrors or other surfaces which could be damaged by scratching. All shower stalls, toilets, seats, urinals, sinks and floors shall be cleaned and sanitized. All toilet paper fixtures shall be checked and filled during each cleaning. An equivalent of one full, dry roll of toilet paper shall be maintained per fixture. Unscented liquid hand soaps shall be provided at each lavatory during each cleaning. One full roll of paper towels shall be placed at each fixture. All remaining soap shall be thoroughly rinsed, and excess water mopped dry or otherwise removed.

12) Light Fixtures – Replace bulbs as needed.

13) Shop and Garage Area – sweep floor clean to remove dirt and debris, empty trash cans and clean restroom as referenced above.

14) Exterior walkways and porches - sweep, weather permitting.

15) Grounds and parking lot - police, sweep/blow clean, weather permitting

b. LEVEL II - JOHN W. FLANNAGAN RESERVOIR:

1) Display cases for animals – Clean glass shelves and doors.

2) Supply rooms & closets - sweep/vacuum or damp mop floors

3) Windows – clean all windows, including door windows, interior and exterior, facings and window seals. All vertical and horizontal blinds, curtains and curtain rods shall be dusted.

4) Light Fixtures - clean fixtures and covers.

5) Stove – Interior shall be cleaned including drip pan.

c. LEVEL III - JOHN W. FLANNAGAN RESERVOIR

1) Doors and Walls – clean with a cleaner approved by the COR.

2) Vents and baseboards – wipe clean all baseboards and cooling/heating vents as well as any ventilation fan vents.

3) Clean all vertical and horizontal window/door blinds.

4) Clean all furniture upholstery

5) Clean and polish all horizontal and vertical surfaces of furniture, cabinets, lockers, etc.

6) Refrigerator – remove all items, and clean interior, including all shelves and doors, defrost and place items back when complete

7) Remove all debris from guttering and ensure drain spouts are clear

8) Clean and disinfect interior and exterior of all trash can surfaces.

d. LEVEL I - NORTH FORK OF POUND RIVER LAKE. On days specified perform a complete cleaning service common to the trade for all areas specified in C-4.2 above, including but not limited to the following. All exposed surfaces shall be cleaned with no soap film or streaks left from any cleaning operation.

1) Floors

a. Carpeted and rug/runners - vacuum and spot clean stains; allow floors to dry before putting back down.

b. Uncarpeted - sweep or vacuum and wet mop; clean and remove scuff marks and excess water.

2) Interior walls, ceilings, baseboards, trim, doors, pictures, bulletin boards, exhibits, etc. - dust and spot clean as needed.

3) Interior windows, facings and sills - clean and wipe dry. Use only ammonia-free cleaner on office windows with shading.

4) Waste baskets and trash cans - empty and replace bags when soiled; clean and disinfect interior and exterior if soiled/stained. Other bagged trash generated at the office/shop shall also be removed by the Contractor.

5) Furniture - dust and/or clean. Clean fabric with an approved upholstery cleaner as needed. Feather dusters are prohibited in the office area.

6) Office machines and equipment - dust and/or clean exterior surfaces.

7) Ash trays (located outside) – clean/empty.

8) Drinking fountain, laundry tub, eyewash station, maintenance shelves, tables, cabinets, etc. - dust and/or clean.

9) Stove, refrigerator - dust and/or clean exterior surfaces; however, clean interior of microwave.

10) Restrooms. Do not use abrasive materials to clean mirrors or other surfaces which could be damaged by scratching. All shower stalls, toilets, seats, urinals, sinks and floors shall be cleaned and sanitized. All toilet paper fixtures shall be checked and filled during each cleaning. An equivalent of one full, dry roll of toilet paper will be maintained per fixture. Liquid hand soaps shall be provided at each lavatory during each cleaning. Fill paper towel dispensers as required. Deodorant blocks shall be installed and replaced as required on all urinals and toilets. All remaining soap shall be thoroughly rinsed, and excess water mopped dry or otherwise removed.

11) Shop and Garage Area, Storage Room and Paint Locker - all horizontal surfaces of tables, benches and equipment shall be cleaned.

12) Light Fixtures – Replace bulbs as needed.

13) Exterior walkways and porches - sweep, weather permitting.

14) Grounds and parking lot - police, weather permitting.

e. <u>LEVEL II - NORTH FORK OF POUND RIVER LAKE</u>.

1) Lights and covers – clean fixtures and covers.

2) Heat pump cold air return filters – check and replace as needed.

3) Refrigerator – defrost as needed.

4) Exterior windows, doors, and trim, facings and sills - clean.

5) Exterior walls, ceilings, and overhangs - remove spider webs, insect nests, etc.

6) Exterior paved area - sweep and/or blow clean, weather permitting.

7) Vehicle shed and POL building - sweep and remove all accumulated trash, leaves, etc.

f. <u>LEVEL III - NORTH FORK OF POUND RIVER LAKE</u>.

1) Interior office walls (wall papered) - clean (mild soap and rinse).

2) Vertical blinds - clean.

3) Heat vents and cold air return - clean.

4) Remove debris from all rain gutters and ensure downspouts are open.

C-4.4 DEFICIENCIES.

A Quality Control Inspector (QCI) will be notified of any deficiencies in performance or quantity of work and given the opportunity to re-perform the work. If a deficiency is noted on an inspection report, it must be corrected by the completion date, or a CDR will be issued. If all work is not completed as specified on the approved cleaning schedule, the Contractor will not be allowed to continue the cleaning services, a CDR will be issued, and the Government will implement a cure as described in Section C-1.19.

C-4.5 SUPPLIES TO BE FURNISHED BY THE CONTRACTOR.

The Contractor shall furnish all cleaning, disinfectant and pesticide items necessary to perform the required work. The Contractor shall furnish toilet paper (two-ply), paper towels (two-ply), unscented liquid soap and plastic trash can liners that fit each intended receptacle. Toilet tissue shall be roll type, good quality and white in color. Plastic trash bag shall be at least 4 mils thick or capable of suspending at least 50 pounds of dry weight. All cleaning, disinfectant and pesticides shall be approved by the COR before being used by the Contractor.

C-4.6 SPECIAL PROVISIONS.

All cleaning materials and agents used shall be approved by COR.

Buckets and brushes used to clean the toilets shall be identified by marking or color code. These buckets and brushes shall not be used to perform tasks other than toilet cleaning.

The Contractor shall take measures not to interrupt ongoing Government functions. For example: Vacuum cleaning shall not interfere with telephone conversations, or meetings may preclude the cleaning of specific areas for limited durations.

C-4.7 SERVICE EQUIPMENT.

The following equipment is recommended to perform the work specified:

Brooms
Vacuum Cleaner, approved by COR
Mops
Rags
Buckets
Scrub Brushes
Water Hose
Truck, ½ –ton or larger, to haul trash and garbage
Small hand tools
6 ft. and 8 ft. Stepladder

Adequacy of the equipment to perform the required service will be determined by the COR.

C-4.8 CHANGES IN SPECIFICATIONS.

The right is reserved, as in the interest of the Government may require, revising or amending the specifications prior to the date set for receipt of quotes. Such revisions and amendments, if any, will be announced by amendment or

amendments to this solicitation. Copies of such amendments as may be issued will be furnished to all prospective offerors. If the revisions and amendments are of a nature which require material changes in quantities or prices offered, or both, the date set for receipt of quotes may be postponed by such number of days as in the opinion of the Contracting Officer will enable the offerors to revise their quotes. In such cases, the amendment will include an announcement of the new date for receipt of quotes.

- END OF SECTION C-4 –

SECTION C-5

Facility Repair, Maintenance, and Other Non-Routine Work

C-5.1 GENERAL.

The Contractor shall provide all qualified personnel, supplies, tools, equipment, vehicles and transportation to perform the services required for the operation and maintenance, and non-routine work except specified within.

C-5.2 NON-ROUTINE WORK (Items #0053 – #0072).

There will be no set schedule of work for work under this section. All work from this section will be accomplished using the price breakout schedule items in Section C-5 in accordance with section C-1.4, and by mutual agreement between the Contractor and the KO with the issuance of a Bilateral Task Order..

C-5.3 WORK TO BE PERFORMED.

a. Guardrails, Signs, Barricades, Bumpers, Curbs and Post. The Contractor shall realign, paint, repair, install, remove, and/or replace bulletin boards, guardrail, signs, barricades, gates, bumpers, curbs, fences, and posts as specified in the Task Order. Close coordination between the Contractor and the COR shall be necessary for the maintenance (e.g. cleaning, repainting, repairing), placement, removal and/or replacement of signs. Corps of Engineers' Sign Standards, Manual on Uniform Traffic Control Devices, and other Federal and/or State Standards must be utilized in the placement or replacement of signs.

b. Maintenance and Repair of Roads, Parking Areas, Pull-Offs and Launching Ramps. The contractor shall perform minor repairs to the road system, parking areas, pull-offs, and launching ramps of the Project. All repairs shall be made when and where required, in accordance with appropriate industry standards, and in such a manner as to prevent further deterioration and provide safe, well-maintained facilities. Such work shall include repair of potholes and road shoulders, cleaning culverts, replacing bridge decking, ditching, curbing, striping, regarding, removal of obstacles and other minor repairs. It is the spirit and intent of these specifications for repairs to be made that shall be equal to or better than the existing surrounding surface.

c. Natural Resource Management. Services provided under this Section shall include the following:

1. Natural Resource Protection. Perform services to protect and enhance project natural resources. Examples of work in this section include constructing fire roads and erosion control devices; tie down, remove or anchor fallen trees along shoreline, rivers, creeks etc.; place riprap, install protective covering on tree bases to prevent animals and chains from destroying them, alleviate drainage problems, remove beaver dams and topping trees.

2. Natural Resources Enhancement. Perform services to enhance and promote project natural resources. Examples of work in this section include: planting and constructing wildlife food plots, seedlings, placing brush piles for wildlife habitat, and the placement of fish attractors for fish habitat.

3. Recreation Area Maintenance. Perform services to maintain launching facilities, day use facilities and other recreation areas in a safe, usable and operable condition. Examples of work in this section include: refurbishing sites, installing grills, installing lantern post, installing fire rings, installing other recreation type equipment, spreading gravel, anchoring picnic tables, placing bumper blocks, grading sites, cutting brush and landscaping.

4. Trail Maintenance. The work includes placing gravel base, shredded tree bark and/or sand mixture where required; erosion control and repair; repair or replacement of signs or posts; construction, maintenance and repairs of steps, footbridges, trail surfaces, fences, benches and other structures; removal of dead or unsafe trees and clearing of brush along the trail right-of-way.

   Trails are listed and described below and are mapped in Exhibit B:

   i. Twins Eagle Trail. This trail is approximately 2 mile long, 6 feet wide with 8 feet head clearance over some arduous terrain with few structures.

   ii. Trail of Trees. This interpretive trail is approximately ½ mile in length, 6 feet wide with 8 feet head clearance.

   iii. Junction Fisherman's Trail. This trail is approximately ½ mile long, of which approximately.4 miles is 6 feet wide with 8-foot head clearance, and approximately 0.1 mile is 10 feet wide with 8-foot head clearance.

   iv. Red Dog Fisherman's Trail. This trail is approximately 1 mile long with a 10-foot-wide pathway and 8-foot head clearance.

   v. Branham Farm Bird Trail. This trail is approximately 2.5 miles long with a 10-foot-wide pathway and 8-foot head clearance.

   vi. Junction Bridge Pulloff and Fishing Trail. This trail is approximately ½ mile in length, 6 feet wide with 8 feet head clearance. Pulloff area is approximately 300 foot in length and will extend 10 feet beyond the guardrail.

   vii. Below Dam Fishing Trail. The trail is approximately 3/4 mile in length with a 10-foot-wide pathway and 10-foot head clearance.

   viii. Skeetrock Bridge Fishing Trail. The trail is approximately 1/8 mile in length with a 20-foot-wide pathway and 10-foot head clearance that widens out at the lake area.

5. Navigational Aids Maintenance. Place and remove buoys from Lake following the provisions of the task order. Store buoys where and as described in the task order. Complaints from the public or reports from the Contractor concerning the system (e.g., missing buoys, buoys off station, unmarked hazards, damaged buoys, etc.) shall be immediately reported to the OO, who will determine the necessary corrective actions to be accomplished within the scope of this contract. An orange float shall be attached to the mooring tackle before buoys are brought in for repair to eliminate losing tackle.

d. Cleaning of Government Vehicles and Equipment. The contractor shall vacuum, and wipe clean all interior surfaces. Carpeted interior may require shampooing or aggressive scrubbing. Exterior of vehicles or equipment shall be wetted, washed (by using either a hand mitt or brush) and rinsed. Windows and mirrors shall be wiped clean, interior and exterior, with a glass cleaner. Outside walls of tires and rims shall be scrubbed clean with a degreaser to remove excess dirt and brake dust buildup and rinsed completely. Vehicle shall be dried to a finish after washing. Vehicle waxing may be required. All cleaners shall first be approved by the COR. There shall be no soap film, streaks or residue left from any cleaning operations.

C-5.4. SCHEDULE OF WORK.

For the maintenance of navigational aids specifically, any repairs or services necessary to correct a safety hazard shall be accomplished on an as-needed basis, and within 24 hours of notification. Total system maintenance and servicing shall be accomplished semi- annually.

C-5.5. LOCATION OF WORK.

The bulletin boards, guardrail, signs, barricades, bumpers, curbs, fences, and posts are located within the Project area. Some project directional signs are located outside the project boundary (within an approximate distance of 10 miles) and are included as part of this contract.

The maintenance and repair work described herein, shall be performed on all project roads, launching ramps, parking areas, and pull-offs listed in Exhibit C. The quantities are approximate, and may vary as areas are opened or closed, as areas are expanded or developed, or other requirements change.

C-5.6. EQUIPMENT LIST.

The Contractor shall insure he has adequate equipment to perform the duties specified in this contract. In addition to any equipment furnished by the Government, the following is a list of additional equipment which has been historically necessary to perform this work. This list of equipment may be incomplete and is a minimum. Additional equipment appropriate to perform the required work is permitted and encouraged.

- Wheelbarrow
- Portable generator
- Assorted hand tools
- Electric hand tools
- Safety equipment
- Walkie Talkies
- Utility Trailer
- Safety equipment
- Backpacks

C-5.7. EQUIPMENT AND SUPPLIES.

C-5.8. SPECIAL PROVISIONS.

a. Hazards. Due to topography, the Contractor shall have to transport paint, signs, and other materials on foot in rugged terrain. At times, cliffs, unfavorable weather, unsafe footing, snakes, poisonous plants, stinging insects, and other hazardous features may be encountered.

b. Contractor Representative. For all work under this section at least one Contractor employee must be a Contractor Representative.

C-5.9. LINE ITEMS.

Task orders are to be ordered using those items listed in C-5 of the Price Breakout Schedule. Quantities listed are estimated quantities.

END OF SECTION C-5

SECTION C-6

Drift, Debris, and Trash Removal

C-6.1. GENERAL.

The work in this section shall be confined to the lake surface and land areas maintained by the Corps of Engineers. The work shall consist of removing, cutting, stacking, burning, burying, and/or pushing drift, trash, debris and fallen trees to the extent specified. Tools and equipment required to perform this work including all safety equipment to perform all functions shall be provided by the Contractor. Government shall provide necessary vessels in order to complete each job. Contractor shall provide qualified, trained, Virginia State Licensed boat operators. In certain cases, where there is high recreational boating use, such as busy weekends, restrictive measures may be imposed to accommodate the orderly progress of the project activities.

C-6.2. WORK TO BE PERFORMED.

The Contractor shall perform the drift, trash, debris and fallen trees removal by the following methods:

a. The Contractor shall remove specified items, such as abandoned equipment, vehicles, and boats; fences, barrels, lumber, and other refuse on Government property. These items shall be disposed of in an authorized dumping area, in accordance with federal, state and local law and ordinances, or transferred to an authorized project impound area. All work removing items of value, such as abandoned vehicles, shall normally be done when project personnel, assigned by the COR, are present.

b. The Contractor shall work from a boat and gather drift, fallen trees, trash and debris from the lake surface and/or shoreline, and transport it to a designated disposal site, where the Contractor shall burn or bury as specified. All burning shall be conducted below the summer pool elevation, unless specified otherwise on the Task Order. The Contractor may be required to transport material to an approved landfill or dumpsters provided by the Government.

c. The Contractor shall work from a boat and push floating logs, drift, trash and debris back into coves or into designated shoreline areas, where the Contractor shall tie off, buoy off, or otherwise restrict the movement of the materials in that area, until the lake is drawn down in the fall or the materials can be removed to be burned or buried. Certain trees and logs, designated by the COR, shall be permanently anchored or tied off to act as fish attractors. This work will be negotiated separately using Section C-6 of the Price Breakout Schedule.

d. The Contractor shall work around the lake shore, usually in early spring or late fall while the lake is at winter pool, and cut, stack, burn, remove or bury drift, trash and debris.

C-6.3 SCHEDULE OF WORK.

The Government will make every effort to schedule large jobs well in advance. Significant storm events or flooding may require immediate need for significant services or may inundate work areas.

C-6.4. SPECIAL REQUIREMENTS.

a. All drift, debris and trash shall be disposed of at locations and in a manner designated by the COR. Unless otherwise specified, the Contractor shall dispose of all material immediately after removal, so that in case of high water, the removed material cannot be washed back into the lake. If any of the removed materials, through negligence on the part of the Contractor, washes into the lake, the Contractor shall remove and dispose of such

material at no cost to the Government.

b. The Contractor's operations shall be subject to all public laws concerning pollution, fire, and safety. Burning operations shall be conducted so as to prevent damage to standing timber or other flammable growth and shall be conducted beyond the minimum safe distance from flammable growth, in accordance with State Forestry laws. The Contractor shall be responsible for any damage to life and/or property, resulting from fires that are started by his employees or as a result of his operations. Permission to burn any material shall be obtained from the COR prior to ignition. During forest fire season, February 15- April 30 and October 1 - December 15, the Virginia Division of Forestry shall be notified before starting a debris fire.

c. The Contractor shall furnish at the site, adequate firefighting equipment, such as backpack tanks, flappers, shovels and rakes, to properly equip his personnel for fighting fires. Fires shall be guarded at all times and shall be under constant surveillance, until they have been extinguished.

d. The Contractor shall provide a workboat and workboat operator to remove large accumulations of trash, drift, debris and fallen trees from accessible shoreline areas (usually at or near the dam structures). The workboat shall continuously push materials into reach of the backhoe working from the shoreline.

C-6.5 DRIFT AND DEBRIS REMOVAL REQUIREMENTS.

NON-COMBUSTIBLE DEBRIS REMOVAL (SHORELINE) - The Contractor shall collect non-combustible debris from designated areas along the shoreline and haul this material to the dumpsters. The type of debris to be collected and taken to the dumpsters will include, but not be limited to, all man-made objects of glass, metal, plastic, Styrofoam, rubber, and large items such as tires and appliances. The Contractor shall supply the trash bags used during the pickup of non-combustible debris. After the debris has been collected from the designated area and measured, the Contractor shall haul it in a pontoon boat or trailer to the dumpsters within two days.

COMBUSTIBLE DRIFT AND DEBRIS REMOVAL (SHORELINE) - The Contractor shall collect the combustible drift and debris accumulated on the shoreline. The combustible drift shall be cut into no more than 4 foot sections and along with debris, will be uniformly stacked into piles of geometric shapes for measuring. After the piles are measured, the contractor shall burn the combustible drift, such as driftwood, fallen trees, stumps with roots, and other wood-based products and the combustible debris, such as paper and cardboard. A hot continuous fire will aid in burning wet drift. Non-combustible debris will not be placed in the piles for burning. This process will continue until all drift and debris is removed from the shoreline or unless otherwise notified by the COR.

C-6.6 MEASUREMENT METHODS FOR PAYMENT.

a. Measurement for payment of Non-Combustible Debris. Measurements will be used to convert the amount of debris into units of cubic yards. All measurements shall be taken jointly by a representative of the Corps of Engineers and the Contractor or his designated representative. Payment for debris removal services will be made at the unit price per cubic yard for "Collected and Disposed of Debris" as listed in the Service Price List Measurements for payment of collected debris will be made immediately before the debris is hauled to a disposal site. The volume of debris will be calculated using one of two methods:

1. Measurements taken of the space occupied by the material in the bed of the haul truck.
2. Material can be stacked into piles of geometric shapes to facilitate measuring.
3. Measurement of dumpsters filled.

b. Measurement for payment of Combustible Drift and Debris. Measurement of combustible drift shall be made prior to burning. The stacked debris must approximate geometric shapes to facilitate measuring (Reference Geometric Shapes Diagram). The volume of drift and debris will be calculated from measurements to be taken at each location where the drift and debris is piled. The measurements will be used to determine the amount of drift and debris in units of cubic yards. All measurements shall be taken jointly by a representative of the Corps of

Engineers and the Contractor or his designated representative. See Exhibit Q.

C-6.7 EQUIPMENT LIST.

The Contractor shall insure he has adequate equipment to perform the duties specified in this contract. In addition to any equipment furnished by the Government, the following is a list of additional equipment which has been historically necessary to perform this work. This list of equipment may be incomplete and is a minimum. Additional equipment appropriate to perform the required work is permitted and encouraged.

- Assorted hand tools,
- Safety equipment, including Personal Floatation Devices
- Chain Saws
- Gasoline-powered winch
- Hand nets
- Pole nets
- Pike pole
- Skid tongs

C-6.8. LINE ITEMS.

Quantities of drift and debris removal are NOT guaranteed but based on current funding allocations (which are subject to change during the contract period).

END OF SECTION C-6

SECTION E- Inspection and Acceptance

Inspection of work will be made by the Contracting Officer or his/her authorized representative. Any work judged to be unsatisfactory will be documented and provided to the Contractor. If the work is not corrected to the satisfaction of the Contracting Officer or his/her authorized representative, deductions will be made from the Contractor's overall invoice in accordance with the terms set forth in this contract.

E.1 Compliance. The work will be conducted under the general direction of the Contracting Officer and is subject to inspection by his/her appointed inspectors to ensure strict compliance with the terms of the contract. If the work is not in compliance with these specifications, it will be rejected and the Contractor shall promptly remedy or replace the deficiency to the satisfaction of the Contracting Officer, without cost to the Government. No Inspector is authorized to change any provision of the specifications without written authorization of the Contracting Officer, nor shall the presence or absence of an inspector relieve the Contractor from any requirements of the contract.

E.2 Final Examination and Acceptance. Inspection of work will be made by the Contracting Officer or his/her authorized representative. Any work judged to be unsatisfactory will be documented and provided to the Contractor. If the work is not corrected to the satisfaction of the Contracting Officer or his/her authorized representative, deductions will be made from the Contractor's overall invoice in accordance with the terms set forth in this contract.

SECTION F- Deliveries or Performance

F.1 PERIOD OF SERVICE. The period of service under this contract will be for approximately one (1) year base period, and four (4) option periods. Each option period is one (1) year. See clause 52.217-9 “Option to Extend the Term of the Contract”.

The Government reserves the right to further extend the contract period beyond the fourth option period for a period of six months. The fourth option period unit price(s) will apply to this extension and may be adjusted only as a result of revision to prevailing labor rates provided by the Department of Labor. The second option period wage rate determination will apply to any extension necessary beyond the fourth option period.

F.2 COMMENCEMENT, PROSECUTION AND COMPLETION OF WORK. The Contractor shall be required to commence work on the first task order issued under this contract within 24 hours after the date of issuance of the order. The Contractor shall prosecute said work diligently and shall complete each Task Order by the date prescribed in the order.

F.3 PLACE OF PERFORMANCE. All work is to be performed at John W. Flannagan Dam & Reservoir in Haysi, VA and North Fork of Pound River Lake in Pound, VA.

SECTION G-Contract Administration Data

G.1 LOCATION OF WORK. Cleaning services are required at John W. Flannagan Dam & Reservoir and North Fork of Pound River Lake in Pound, VA for the U.S. Army Corps of Engineers, Huntington District. All the work under this contract will be done within the boundaries of the above projects and specified sites within this contract.

G.2 PERIOD OF SERVICE. The contract period shall begin upon the date of contract award and shall, unless terminated sooner in accordance with the contract clause "Contract Terms and Conditions-Commercial Items", continue for a period of approximately one (1) year from that date plus any options exercised by the Government.

G.3 CONTRACT AMOUNT. Total contract amount shall not exceed $2,000,000 for the life of the contract (base period and any options exercised by the Government). The Government guarantees to order $2,800.00 in services during the life of the contract.

G.4 EXTENDING THE TERM OF THE CONTRACT. The contract contains an option to extend the terms of the contract for four additional periods. Each option period is one year. In accordance with FAR Clause 52.217-9, the Government may extend the term of this contract by written notice to the Contractor within 30 calendar days of contract expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 calendar days before the contract expires. The preliminary notice does not commit the Government to an extension.

G.5 TRAVEL. Government approved travel expenses will be negotiated on individual task orders

G.6 UNAUTHORIZED INSTRUCTION FROM GOVERNMENT OR OTHER PERSONNEL. The Contractor shall not accept instructions issued by any person employed by the U.S. Government or otherwise, other than the Contracting Officer or the Authorized Representative of the Contracting Officer (COR) acting within the limits of his/her authority as defined in the COR appointment letter. Designation of the Contracting Officer's Representative shall be made upon contract award and a copy of the designation letter shall be furnished to the Contractor.

G.7 DESIGNATION OF AUTHORIZED REPRESENTATIVE. The Contracting Officer shall assign the COR to oversee services during the course of this contract or during the course of a task order. This official shall be responsible for affording liaison between the contract forces and the Contracting Officers.

G.8 ORDERING

a. Services for each task order may be requested in writing. Letter requests for quote will be issued by the Contracting Officer/ Contract Specialist. Any type of request for quote shall not be interpreted as a Notice to Proceed with the work.

b. The Government Request for Quote will delineate (1) General Performance Work Statement (2) Location of Work, (3) Character and Extent of Services, (4) Technical Requirements which supplement or complement those contained in Section C of this Basic Contract, and (5) Time Period(s) within which the work must be performed.

c. The Contractor shall prepare an estimate of the time and cost(s) necessary to perform the work and submit a quote in writing to the Contracting Officer by the date specified in the letter requesting the estimate. All quotes shall be directed only to the Contracting Officer. Itemized cost Quotes shall strictly correspond to the units contained in Schedule B of this contract. The Contractor's quote will include identification of work hours by line item and other direct costs such as travel, etc.

d. Prior to beginning a task order, the contractor shall perform an analysis of all safety hazards involved with the execution of the task order. The analysis of hazards involved in each step of the work shall be evaluated and the actions to eliminate or minimize the hazard shall be implemented. The analysis shall be documented on the most current version of the Activity Hazard Analysis (AHA) form being utilized by the Government and shall be submitted to the Contracting Officer (CELRH-CTD) with the Contractor's quote, prior to beginning work. The AHA must be reviewed by all employees assigned to the project, both field

and office. The contractor will be required to maintain a copy of the completed AHA in each vehicle in the field for the duration of the project.

e. Each task order will be discussed by the Contractor and the Contracting Officer's Representatives, as necessary, to develop a mutual understanding of:

1. Type and performance work statement to be accomplished, including accuracy criteria.
2. End product required by the Contracting Officer.
3. Commencement and Completion dates required by the Contracting Officer.
4. Existing site conditions, survey control and other available data.
5. A fair and reasonable estimated cost to perform the work.

f. Time periods within which required work must be accomplished will be defined in each task order placed against the basic contract. Each task order shall contain the agreed to Performance Work Statement, type(s) or service(s) to be performed, specific deliverable items and the negotiated fixed-price cost for performing the work.

g. The sequence involved in issuing a task order is as follows:

1. Request for quote.
2. Submission by the Contractor of estimate of the time and costs required to perform the work. This estimate shall be submitted to the Contracting Officer/Contract Specialist only.
3. Discussions between the Contractor and the Contracting Officer, if necessary.
4. Issuance of task order by Contracting Officer.

G.9 METHOD OF PAYMENT-SUBMISSION OF INVOICES.

(a) Unless otherwise specified in an individual task order, invoices shall be submitted for certification and authorization for payment as specified below.

(b) Invoices shall include the following information:

(1) Contractor's name and complete business address with the telephone number and area code.
(2) Government Contract Number and Task order Numbers
(3) The actual date of invoice preparation by the Contractor.
(4) Invoice Number - Invoices should be numbered in sequence.
(5) Each task order to be invoiced shall be listed in numerical order, one total for each task order listed and one tabulated total for all work orders per invoice.

(c) Invoices shall be submitted to: Kennith Branham at kennith.e.branhamii@usace.army.mil
Phone: 276-835-9544

(d) Sample Invoice Format can be located in Exhibit I.

SECTION H-Special Contract Requirements

H.1 CONTRACTOR'S RESPONSIBILITY. The Contractor shall be responsible that their employees strictly comply with all Federal, State, and municipal laws that may apply to operations under the contract; and it is understood and agreed that the Contractor assumes full responsibility for the safety of their employees, plant and materials and for any damage or injury done by or to them from any source or cause, except damage caused to plant or equipment by acts of the Government, its officers, agents or employees, in which event such damages will be the responsibility of the Government in accordance with applicable Federal laws. For the purpose of this clause, the terms, "Officers, agents or employees" of the Government shall not include persons who are employed by the Contractor and whose services have been furnished to the Government pursuant to this or any other contract. The contractor shall assume full responsibility for the safety of Government equipment or items while in their possession and for any damage done by or to them from any source or cause, except damage caused to plant or equipment by acts of the Government, its officers, agents or employees, in which event such damages will be the responsibility of the Government in accordance with applicable Federal laws.

H.2 SAFETY REQUIRMENTS.

a. General. Contractor shall comply with all Federal, State and Local safety requirements including those specified by the Occupational Safety and Health Act (OSHA) in 29 CRF 1910 General Industry Standard, 1926 Construction Standard and the U.S. Army Corps of Engineers Safety & Health Requirements Manual EM 385-1-1 as currently revised. Where a conflict exists between safety standards/requirements the contractor shall comply with the more stringent requirement. If the Contractor fails or refuses to promptly comply with safety and security requirements as specified herein, any project employee may stop all or part of the work until satisfactory corrective action has been taken. No part of the time lost due to any such work stoppage shall be made subject to any claims for extension of time or for excess costs or damages sustained by the Contractor. Also, the Contractor will not be paid for work not performed as a result of the stop order.

The Contractor shall comply with the Occupational Safety and Health Act (OSHA), the Corps of Engineers Manual, EM 385-1-1 (http://usace.army.mil/CESO/Documents/EM385-1-1FINAL.pdf), in Exhibit E and as otherwise stated herein. Special attention shall be given to the requirements for safety meetings. The Contractor shall inform the COR a minimum of 7 days prior to a Contractor monthly safety meeting, to permit a Government representative to attend.

b. Contractor Accident Prevention Plan (APP). The Contractor shall prepare a site-specific Accident Prevention Plan following the outline provided in EM 385-1-1, Appendix A as a minimum. The contractor shall address each element and sub-element in the outline in the order they appear in Appendix A. Any item from the outline that does not apply must be listed, in its assigned place and a brief explanation of the reason it is not required/provided. The APP shall address any unusual or unique aspects of the project or activity. This plan must be accepted by the Contracting Officer prior to commencement of any work. Contractors are encouraged to contact the USACE Safety & Occupational Health Office for questions or information regarding the development of contract Accident Prevention Plans. Office hours are Monday-Friday 8:30 a.m. - 4 p.m. at (304)399-5039/5032/5326. The web address for EM 385-1-1 is:
http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf

Note: The contractor shall employ a Site Safety and Health Officer (SSHO) who has completed OSHA 30 hour Construction or General Industry Safety training or its equivalent and has five (5) years experience relative to the work to be performed. SSHO credentials shall be submitted for review and acceptance with the APP. SSHO shall complete a minimum of eight (8) hours of safety training annually.

(1) For Negotiated task orders where the Risk Assessment Code (RAC) of the AHA is high or extremely high risk, the SSHO shall be on-site and have no other duties. Following is a list of jobs normally considered high or extremely high risk (This list is not necessarily all inclusive, each task must be evaluated to determine risk):

- Repair buoys
- Attach anchors & cables
- Drift/Debris cleanup
- Work with exposure to hazardous, toxic or radiological waste
- Topping trees
- Removing/anchoring fallen trees
- Remove beaver dams
- Bridge decking
- Fire Fighting

(2) For limited-service contracts, such as park attendant, cleaning, janitorial, routine mowing, general grounds-keeping and low risk negotiated task orders, SSHO responsibilities may be a collateral duty. The Collateral duty SSHO shall have an OSHA approved 30-hour safety course. Following is a list of jobs normally considered low to moderate risk:

- Removing or replacing bulletin boards, signs, barricades, gates, bumpers, curbs, fences & posts
- Planting seeds, installing grills, lantern posts, fire rings, & other campground equipment
- Repairs to fences, play equipment, game courts, picnic units & shelters.
- Boundary marking
- Cleaning culverts
- Spreading gravel or anchoring picnic tables
- Minor landscaping
- Routine building maintenance (painting, plumbing, caulking, patching, finishing, sheet rock, floor tile, carpet, etc.

(3) For very low risk jobs and jobs requiring only one person, such as, field walk-over, surface soil sampling or long term water sampling, the SSHO may be collateral duty.

(4) Work crews of two or more must have two people holding current certification in First Aid and CPR from the American Red Cross, American Heart Association or a licensed physician. Training must include a hands-on component that cannot be taken online and the contractor must maintain appropriate First Aid kit on site. Single individuals working alone must have current certification in First Aid as a minimum.

(5) All work that potentially exposes the worker to falls of six feet or more will require the contractor to submit a Site Specific Fall Protection & Prevention Plan in accordance with EM 385-1-1, Section 21.D.

(6) Cranes and hoisting equipment shall be operated only by qualified personnel (operators licensing, physical and drug testing in accordance with EM 385-1-1 Section 16.B). **Note: CDL Medical Clearance is not acceptable.** Please see attached medical clearance requirements.

(7) Effective November 8, 2010 all "Signalpersons" and "Riggers" shall be qualified. This is a mandatory requirement in accordance with 29 CFR 1926.1400 Regulations. Riggers must be a qualified person for the performance of specified hoisting activities such as during assembly/disassembly, in accordance with OSHA 1926.1404(r)(1) and 1926.1425(c)(3).

(8) Task orders involving potential exposure to Hazardous, Toxic or Radiological Waste shall require development of Site Specific Safety and Health Plan (SSHP) by qualified personnel as specified in EM 385-1-1 Sections 6 and 33.

c. **Risk Management Process.** The Contractor shall utilize risk management tools such as Activity Hazard Analysis (AHA), Job Hazard Analyses (JHAs), Job Safety Analyses (JSAs) or similar tools to identify, assess, prioritize risks and develop controls to minimize, monitor and control the probability and/or impact of unfortunate events to an acceptable level. Within each major phase, all activities, tasks or Definable Features of Work (DFOWs) shall be identified that will require an AHA/JSA/JHA. For each work activity, task or DFOW contractor shall prepare the initial AHA/JSA. A Risk Assessment Code (RAC) is assigned to each step, to the risk that remains after controls have been applied (residual risk) a final RAC (cannot be lower than the highest step RAC) shall be assigned. See EM 385-1-1 Section 01.A.14.b. for further guidance or contact the SOHO for assistance. The AHA/JSA/JHA shall be reviewed and accepted by the proper authority in order to proceed with the activity. All on-site employees shall review the accepted AHA/JSA/JHA prior to performing work and during weekly and "Tool Box" safety meetings as appropriate.

1. AHA/JSA/JHA shall define the activities being performed and identify the work sequences, the specific

anticipated hazards, site conditions, equipment, materials, and the control measures to be implemented to eliminate or reduce each hazard to an acceptable level of risk. AHA/JSA should indicate compliance with EM 385-1-1 personal protective equipment requirements (safety-toed work boots, safety glasses, gloves, hard hats, etc.), work crews of two or more must have two people currently qualified in first aid and CPR and the appropriate first aid kit on site. Single individuals working alone must have current certification in First Aid only.

2. The names of the Competent Person(s) and Qualified Person(s) required for a particular activity (e.g., excavation, scaffolding, fall protection, or other activities as specified by OSHA and this manual) shall be identified and included in the AHA/JSA/JHA, as well as proof of their competency/qualification.

d. **Accident/Mishap Reporting:** The Contractor shall report all recordable mishaps to the GDA within 24-hours in accordance with EM 385-1-1 Section 01.D. Accidents shall be investigated to determine causal factors and corrective actions shall be implemented. Accidents resulting in: days away injuries, days away illnesses, restricted/transfer injuries, property damage of $5,000.00 or more shall be investigated and reported to the GDA using the USACE Accident Investigation Report Form ENG 3394 within 24 hours of the occurrence.

(1) Immediate notification to the GDA is required for all serious accidents:

a. Fatal Injury/illness;
b. Permanent totally disabling injury/illness;
c. Permanent partial disabling injury/illness;
d. One (1) or more persons hospitalized as inpatients as a result of a single occurrence;
e. $500,000 or greater accidental property damage;
f. Three (3) or more individuals become ill or have a medical condition suspected to be related to a site condition, or a hazardous or toxic agent on the site;
g. USACE aircraft destroyed or missing;

The Contractor shall maintain an OSHA Log of Work Related Injuries and Illnesses, OSHA Form 300 and comply with all accident reporting and recordkeeping requirements specified in 29 CFR 1904.39.

(2) In addition to the above, any mishap occurring in any of the following high hazard areas shall be reported immediately to the GDA, investigated and corrective actions implemented.

a. Electrical (includes Arc Flash, electrical shock, etc.);
b. Uncontrolled Release of Hazardous Energy (includes electrical and non-electrical);
c. Load Handling Equipment (LHE) or Rigging;
d. Fall-from-Height (any level or other than same surface);
e. Underwater Diving.

e. Public Safety. The Contractor shall ensure that reasonable precautions are taken to protect the public at all times where work is being performed. The Contractor shall immediately report to the COR any potential hazards found by his employees on the project. The Accident Prevention Plan shall include procedures to be taken to provide for public safety. Additionally, the Contractor shall not allow any persons, except employees, into work areas that are not otherwise open to the public; nor shall the Contractor transport in Contractor work vehicles any persons, except employees, during times the Contractor is on the project performing work under a Task Order.

1) Contractor employees working along highways and roads, or close to vehicular traffic, heavy equipment or equipment loading operations shall wear High Visibility Apparel meeting as a minimum, ANSI/ISEA 107-2004 Performance Class 2 requirements.

f. Personal Protective Apparel and Equipment. Protective apparel and equipment, as identified in the AHA, shall be provided to eliminate or minimize hazards to personnel. As a minimum, each employee shall wear a short-sleeved shirt (as detailed in C-1.8), long trousers, and safety toed footwear in accordance with ASTM-F2412/F2413 during all contract work. Face shields, safety glasses with side-shields meeting ANSI Z87.1, or goggles, and hearing protection shall be worn by employees when required by safety manual. Contractor personnel involved in handling or application of pesticides or herbicides shall be licensed in accordance with State and local requirements and shall use all protective apparel per manufacturer's recommendations. Fire extinguisher(s) and first aid kit(s) meeting the Safety Manual standards shall also be provided and easily accessible to all employees and maintained in accordance with EM 385-1-1.

H.3 REQUIRED INSURANCE FOR WORK AT THE PROJECT. The Contractor shall procure and maintain during the entire period of performance under an applicable task order the following minimum insurance, if specified on the individual delivery order:

a. Worker's Compensation. Worker's Compensation and Occupational Disease Coverage as legally required by the State wherein the work is being performed.

b. Comprehensive Automobile Liability Insurance. Bodily injury coverage with minimum limits of $200,000 per person and $500,000 per occurrence and $100,000 per occurrence for property damage shall be required. THUS, THE COMBINED SINGLE LIMIT SHALL BE AT LEAST $600,000.00.

c. Comprehensive General Liability Insurance. Bodily injury coverage with minimum limits of $500,000 per occurrence shall be required. Property damage coverage with a minimum limit of $100,000 per occurrence shall be required. THUS, THE COMBINED SINGLE LIMIT SHALL BE AT LEAST $600,000.00.

Prior to commencement of work under an applicable task order, the Contractor shall furnish a Certificate of Insurance to the Contracting Officer for approval. The Certificate of Insurance shall be for a minimum 12-month duration. A new Certificate of Insurance shall be furnished 10 calendar days prior to expiration date of prior certificate. If no approved certificate is received prior to expiration period, all work will be stopped pending receipt of an approved certificate. The Certificate of Insurance shall contain an endorsement to the effect that any cancellation or material change adversely affecting the Government's interest shall not be effective:

(1) for such period as the laws of the State in which this contract is to be performed prescribe or
(2) until 30 calendar days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

H.5 QUALITY CONTROL. The Contractor shall establish a quality control program to assure the requirements of the contract are provided as specified. This program must be approved by the Contracting Officer prior to commencement of work under this contract. The program shall include, but not be limited to the following:

(1) An inspection system covering all the work stated in the contract specifications specifying areas to be inspected on either a scheduled or unscheduled basis and the individuals who shall do the inspection.
(2) A method of identifying deficiencies in the quality of work performed before the level of performance is unacceptable.
(3) A file of all inspections conducted by the Contractor and the corrective actions taken. This documentation shall be made available to the Government representative inspecting the work on site.

H.6 WAGE RATES
Service Contract Wage Rate Determinations as received from the U.S. Department of Labor (DOL), are included in the procurement.

H.7 SECURITY REQUIREMENTS

All Contractors and subcontractor employee(s) working on this contract who require access in and/or around any Huntington District facilities shall receive authorization to be on site at these facilities based upon a favorable background investigation in accordance with “Homeland Security Presidential Directive 12: Policy for a Common Identification Standard for Federal Employees and Contractors” (HSPD 12). The Huntington District Security Management Office shall submit contractor(s) personal information to complete the basic background investigation in order to make a recommendation to the Contracting Office of an employee’s suitability for work on Government property. The Procuring Contracting Officer (PCO) has the right to deny any contractor or subcontractor employee from working on the contract based upon the results of the background investigation provided by the Huntington District Security Management Office. The Government, Contractor, and subcontractors shall not permit any employee(s) access to drawings, blueprints, records, photos, sites, or projects until the Huntington District Security

Management Office has completed an Operations Security (OPSEC) review of such items and determined they can be released.

FOR ALL CONTRACTS 1-YEAR AND SUBSEQUENT OPTION YEARS:

Contractors shall submit a complete investigation packet for each contractor and subcontractor employee to the Huntington District Security Management office within 10 working days after award of any contract, or prior to the individual being permitted unescorted access in or on District facilities.

The Contractor must also provide the following: (1) Name of the Contract Specialist with whom he/she is working, (2) Project Name, (3) Contract Number (4) Task Order Number when applicable, and (5) Security Information sheet on each employee working on site must be submitted directly to the Huntington District Security Office.

The Contractor must provide a full legal name, complete SSN#, Date of Birth, Place of Birth (City and State) and Driver's license number if available. It is the Contractor's responsibility to ensure the above information is accurate and legible, otherwise delays may occur.

Contractors shall have background checks completed for their employees annually in the case of Contracts with option periods. For instance, if the employee was cleared in May of 2018, they shall be cleared again in May of 2019. It is the Contractor's responsibility to ensure that each employee's security is up to date. Failure to comply may lead to possible removal from the project/jobsite.

The Contractor must ensure if new employees are brought in to work on an existing Contract with the U.S. Army Corps of Engineers (USACE), they must process the employee through the Huntington District USACE Security Management Office for background purposes.

FOR CONTRACTORS REQUIRING DOD COMMON ACCESS CARDS (CAC)

The documents listed below are required:

SF 85, Questionnaire for Non-Sensitive Positions (see http://www.opm.gov/forms/ to print form). FD 258, Contractor Fingerprint Card (one card for digital prints, two for ink prints) (NOTE: a trained/qualified individual must take prints, ORI block on the FD 258 must be USOPM000Z) (Contractor Fingerprint Cards (FD-258) may be obtained by Contracting Division by contacting the Huntington District Security Management Office).

Contractor shall report any changes in personnel, or at any time conditions change at least 5 working days prior to individual(s) need to have access to the site. The Contractor shall provide the same information as listed above for all new employees.

Following submission of paperwork, the Huntington District Security Management Office will conduct an initial criminal check based upon the information provided. If there are no issues, the Huntington District Security Management Office will make recommendations to the PCO or their Designated Representative. The Huntington District Security Management Office cannot give approval due to unfavorable report(s). The Huntington District Security Management Office shall coordinate with Office of Counsel and will jointly make recommendations to the PCO and/or the Designated Representative should a background investigation come back with derogatory information. The PCO will make the determination whether to allow the Contractor personnel to work on the site based on Security and Office of Counsel recommendations, and the PCO will advise the Contractor of the decision.

FOREIGN NATIONALS

The Contractor shall provide the package listed above, as well as additional materials noted below for all Foreign Nationals. The Contractor is to expect additional time in the approval process for all Foreign Nationals due to the level of review and elevation of the review to Headquarters staff to complete. All Foreign Nationals must comply with the following paragraph:

In accordance with Engineering Regulation 380-1-18, "Technology Transfer, Disclosure of Information and Contacts with Foreign Representatives" dated 1 August 1996, Section 4, all foreign nationals who work on Corps of Engineers' contracts shall be approved by the Headquarters US Army Corps of Engineers (HQ USACE) Foreign Disclosure Officer before beginning work on this contract; this regulation includes subcontractor employees. The Contractor shall submit to the Security Management Office, the names of all foreign nationals proposed for performance under this contract, along with documentation to verify legal admittance into the United States. Such documentation shall include at least one of the following: a U.S. passport, Certificate of U.S. Citizenship (INS Form N-560 or N-561), Certificate of Naturalization (INS Form N-550 or N-570), Alien Registration Card with photograph (INS Form I-151 or I-551), Employment Authorization Card (INS Form I-688A), etc.

In order to assure forms are properly completed, and to minimize time delays, the Contractor is encouraged to work closely with the Huntington District Security Management Office. The Government will return for correction incomplete forms, illegible forms, etc. which will delay the contractor / subcontractor from beginning work.

Security requirements are subject to change in accordance with HSPD-12, Office of Personnel Management, regulation or policy changes, etc. The Government shall add any changes to security requirements by modification to the contract.

The Contractor shall contact the Huntington District Security Management Office by phone, letter, or email at the following numbers/addresses:

CELRH-SM
502 Eighth Street
Huntington, WV 25701

Stephen R. Curry, phone (304) 399-5695; email stephen.r.curry@usace.army.mil
Matthew D. Green, phone (304) 399-5294; email matthew.d.green@usace.army.mil

ATOPSEC REQUIREMENTS

AT Level I Training. All contractor employees, to include subcontractor employees,requiring access to Army installations, facilities, controlled access areas, or require network access, shall complete AT Level I awareness training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. Upon request, the contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee, to the COR or to the contracting officer (if a COR is not assigned), within 5 calendar days after completion of training by all employees and subcontractor personnel. AT Level I awareness training is available at the following website:
http://jko.jten.mil/courses/atl1/launch.html; or it can be provided by the RA ATO in presentation form which will be documented via memorandum.

Access and General Protection/Security Policy and Procedures. All contractor and all associated subcontractors' employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation/facility access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must

comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any installation or facility change, the Government may require changes in contractor security matters or processes.

For contractors who do not require CAC, but require access to a DoD facility or installation. Contractor and all associated sub-contractors employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05 / AR 190-13), applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative, as NCIC and TSDB are available), or, at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

Suspicious Activity Reporting Training (e.g. iWATCH, CorpsWatch, or See Something, Say Something). The contractor and all associated sub-contractors shall receive a brief/training (provided by the RA) on the local suspicious activity reporting program. This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the project manager, security representative or law enforcement entity. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance with the results reported to the COR NLT 5 calendar days after the completion of the training.

For Contracts that Require OPSEC Training. All new contractor employees will complete Level I OPSEC Training within 30 calendar days of their reporting for duty. Additionally, all contractor employees must complete annual OPSEC awareness training. The contractor shall submit certificates of completion for each affected contractor and subcontractor employee, to the COR or to the contracting officer (if a COR is not assigned), within 5 calendar days after completion of training. OPSEC awareness training is available at the following websites: https://www.iad.gov/ ioss/ or http://www.cdse.edu/catalog/operations-security.html; or it can be provided by the RA OPSEC Officer in presentation form which will be documented via memorandum.

Pre-screen candidates using E-Verify Program. The Contractor must pre-screen Candidates using the E-verify Program (http://www.uscis.gov/e-verify) website to meet the established employment eligibility requirements. The Vendor must ensure that the Candidate has two valid forms of Government issued identification prior to enrollment to ensure the correct information is entered into the E-verify system. An initial list of verified/eligible Candidates must be provided to the COR no later than 3 business days after the initial contract award." *When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, with the designated Government representative. This Form will be provided to the Contracting Officer and shall become part of the official contract file.

H.7 VETERANS EMPLOYMENT EMPHASIS FOR U.S. ARMY CORPS OF ENGINEERS CONTRACTS
In addition to complying with the requirements outlined in FAR Part 22.13, FAR Provision 52.222-38, FAR Clause 52.222-35, FAR Clause 52.222-37, DFARS 222.13 and Department of Labor regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract, USACE contractors are encouraged to seek out highly qualified veterans to perform services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:

U.S. Department of Labor Veterans' Employment and Training Service (VETS):https://www.dol.gov/vets/
Federal Veteran Employment Information: https://www.fedshirevets.gov/
Veterans Opportunity to Work (VOW) Program: https://www.benefits.va.gov/vow/
U.S. Army Warrior Transition Command Employment Index: https://wct.army.mil/modules/employers/index.html
Hiring Our Heroes: https://www.uschamberfoundation.org/hiring-our-heroes

SECTION J- List of Documents, Exhibits and Other Attachments

A. Items to be Delivered at Least One Week Prior to Pre-Work Conference

B. Mowing and Cleaning Maps

C. Approximate Quantities by Area

D. Safety Plan Outline

E. Partial Listing of Safety Requirements

F. Safety Forms

G. Quality Control Plan

H. Quality Assurance Surveillance Plan

I. Sample Work Schedule

J. Sample Invoice

K. Government Furnished Equipment List

L. Task Order, DD 1155

M. Job Request Form, CELRH 2770

N. Contract Discrepancy Form, DD 2759

O. Contractor Equipment and Inspection Forms

P. Vehicle Operations

Q. Inspection Forms